



Medford City Council
Medford, Massachusetts

The Sixteenth Regular Meeting, September 29, 2026

City Council

Isaac B. "Zac" Bears
Anna Callahan
Emily Lazzaro
Matt Leming
Liz Mullane
George A. Scarpelli
Justin Tseng

This meeting will take place at 7:00 P.M. in the City Council Chamber, 2nd Floor, Medford City Hall, 85 George P. Hassett Drive, Medford, MA and via Zoom.

Zoom

Link: <https://us06web.zoom.us/j/89707088725?pwd=gVahqNBaAuTbTXUa0Natll6O1QcdE3.1>

Call-in Number: +19292056099,,89707088725#,,,,*805481# US (New York)

Live: Channel 22 (Comcast), Channel 43 (Verizon), [YouTube](#), and medfordtv.org.

To submit written comments, please email ccmembers@medford-ma.gov.

CALL TO ORDER & ROLL CALL

SALUTE TO THE FLAG

ANNOUNCEMENTS, ACCOLADES, REMEMBRANCES, REPORTS, AND RECORDS

26-168 - Offered by Isaac Bears, Council President, Liz Mullane, City Councilor, Anna Callahan, City Councilor, Justin Tseng, City Councilor

Resolution to Invite Residents to Ward 5 Neighborhood Meeting on October 20th

26-171 - Offered by Isaac Bears, Council President

Resolution to Invite Residents to the Medford Fire Department's Fire Prevention Day
Saturday, October 10

Records

The Records of the Meeting of September 15, 2026 were passed to Councilor Scarpelli.

Reports of Committees

24-354, 26-024 and 26-138 - Offered by Liz Mullane, City Councilor

Resident Services and Public Engagement Committee, September 16, 2026, Report

Refer to Committee for Further Discussion

24-033 - Offered by President Bears and Councilor Leming

Zoning Ordinance Updates - Zoning Consultant RFP (to be referred to Committee of the Whole)

26-169 - Offered by Liz Mullane, City Councilor, Justin Tseng, City Councilor

Resolution to Improve the City Website (to be referred to the Resident Services and Public Engagement Committee)

HEARINGS

26-158

Petition for Grant of Location - National Grid/Verizon - North Street/Walking Court

25-136

Submitted by City Council

Public Hearing - Proposed Amendments to the Medford Zoning Ordinance, Chapter 94
(Inclusionary Housing Fractional Payment)

MOTIONS, ORDERS, AND RESOLUTIONS

26-142B - Offered by City Council

City Council Response to Paper 26-142 (Law Department Appropriations)

26-162 - Offered by Isaac Bears, Council President, George Scarpelli, City Councilor

Resolution to Support Workers on Strike at Encore

26-170 - Offered by Liz Mullane, City Councilor, Justin Tseng, City Councilor

Resolution to Object to the Mayor's Politically Motivated Refusal to Advertise Council Neighborhood Ward Meetings

26-172 - Offered by George Scarpelli, City Councilor

Order to Place Adoption of M.G.L. Chapter 40, Section 6C Before Voters in November 2027 (Regarding Liability on Private Ways)

COMMUNICATIONS FROM THE MAYOR

26-133

Submitted by Mayor Breanna Lungo-Koehn

Capital and General Stabilization Fund Appropriation Requests (Request 2 - Police Chief Search)

26-142

Submitted by Mayor Breanna Lungo-Koehn

Supplemental Appropriation for the Fiscal Year 2027

26-166

Submitted by Mayor Breanna Lungo-Koehn

Request for Food Truck, Trolley Dogs at Brooks Elementary School Fall Fest October 4, 2026

26-167

Submitted by Mayor Breanna Lungo-Koehn

Capital and General Stabilization Fund Appropriation Requests (Road Resurfacing, Hormel Stadium, and Medford Connects)

COMMUNICATIONS FROM CITY OFFICERS AND EMPLOYEES

26-163

Offered by Election Commission

Medford Call For Election November 3, 2026

26-164

Offered by Election Commission

Medford Election Warrant November 3, 2026

PUBLIC PARTICIPATION

To participate outside of Zoom, please e-mail REliseo@medford-ma.gov.

UNFINISHED BUSINESS

26-003 Appointment of a City Messenger for 2026 and 2027

IN CITY COUNCIL JANUARY 6, 2026

TABLED

26-063 Resolution to Update the Ordinance Establishing the Medford Commission for Persons with Disabilities

IN CITY COUNCIL JULY 14, 2026 APPROVED FOR FIRST READING

ADVERTISED JULY 30, 2026 MEDFORD TRANSCRIPT & SOMERVILLE JOURNAL

IN CITY COUNCIL AUGUST 4, 2026 ELIGIBLE FOR THIRD READING

Reports Due/Deadlines

16-574 University Accountability Report (Next Report Due in November 2026)

22-026 Quarterly Presentation on City's Financial Health by Chief Financial Officer/Auditor

22-027 Monthly Copy of Warrant Articles from Chief Financial Officer/Auditor

Adjournment



Medford City Council
Medford, Massachusetts

MEETING DATE

September 29, 2026

SPONSORED BY

Isaac Bears, Council President, Liz
Mullane, City Councilor, Anna
Callahan, City Councilor, Justin
Tseng, City Councilor

AGENDA ITEM

26-168 - Resolution to Invite Residents to Ward 5 Neighborhood Meeting on October 20th

FULL TEXT AND DESCRIPTION

Be it Resolved by the Medford City Council that we invite the residents of Ward 5 to attend the Ward 5 Neighborhood Meeting on October 20th at 7PM at the Missituk Elementary School. This meeting will be hosted by Councilor Callahan and Councilor Tseng, and residents are welcome to attend and discuss improvements they would like to see in their neighborhood.

For more information and for a Zoom link when it is available, please visit the [City of Medford Events Calendar](#).

RECOMMENDATION

FISCAL IMPACT

ATTACHMENTS

None



Medford City Council
Medford, Massachusetts

MEETING DATE

September 29, 2026

SPONSORED BY

Isaac Bears, Council President

AGENDA ITEM

26-171 - Resolution to Invite Residents to the Medford Fire Department's Fire Prevention Day
Saturday, October 10

FULL TEXT AND DESCRIPTION

Be it Resolved by the Medford City Council that we invite the residents to attend the Medford Fire Department's Fire Prevention Day on Saturday, October 10 from 11:00 am to 2:00 pm at Medford City Hall.

RECOMMENDATION

FISCAL IMPACT

ATTACHMENTS

- I. 2026 Fire Prevention Day Flyer



FIRE PREVENTION DAY



Join the Medford Fire
Department for an interactive
learning experience on
charging and electrical safety.



Time: 11:00 am – 2:00 pm
Location: Medford City Hall
Date: Saturday, October 10
Food, fun, games, and prizes!

**This event is free and
open to everyone!**

 **Cummins Foundation**





Medford City Council
Medford, Massachusetts

MEETING DATE		SPONSORED BY	
September 29, 2026		Isaac Bears, Council President, Matt Leming, City Councilor	
AGENDA ITEM			
<u>24-033</u> - Zoning Ordinance Updates - Zoning Consultant RFP (to be referred to Committee of the Whole)			
FULL TEXT AND DESCRIPTION			
RECOMMENDATION			
FISCAL IMPACT			
ATTACHMENTS			
None			



Medford City Council
Medford, Massachusetts

MEETING DATE

September 29, 2026

SPONSORED BY

Liz Mullane, City Councilor, Justin
Tseng, City Councilor

AGENDA ITEM

26-169 - Resolution to Improve the City Website (to be referred to the Resident Services and Public Engagement Committee)

FULL TEXT AND DESCRIPTION

WHEREAS, medfordma.org is the primary digital interface between City government and Medford's residents, businesses, and visitors; and

WHEREAS, a review of the site reveals outdated content, navigation mismatching residents' needs, limited language access, and a gap in online services compared to peers; now, therefore:

BE IT RESOLVED, that the City Council refers this matter to the Committee on Resident Services and Public Engagement, which shall solicit public input on website improvements, invite the Communications Office and IT Department to present on current capabilities and constraints, and report back with recommendations.

RECOMMENDATION

FISCAL IMPACT

ATTACHMENTS

None

PETITION FOR GRANT OF LOCATION

MASSACHUSETTS ELECTRIC COMPANY dba NATIONAL GRID, and VERIZON NEW ENGLAND, INC.

PETITION TO INSTALL NEW JO POLE and REPLACE AND RELOCATE JO POLE

Proposed Poles – P1065 and P1064 on North Street

(NATIONAL GRID PLAN #: 31339564)

MEDFORD, MASSACHUSETTS

CITY CLERK'S OFFICE

RECEIVED
CITY CLERK
MEDFORD, MASS.
2026 SEP 16 PM 3:42

You are hereby notified that by order of the Medford City Council, the Medford City Council will hold a Public Hearing in the Howard F. Alden Chambers at Medford City Hall, 85 George P. Hassett Drive, Medford, and via Zoom on Tuesday September 29 at 7:00 p.m., a link to be posted no later than Friday, September 25, 2026, on a petition by Massachusetts Electrical Company dba National Grid and Verizon New England, Inc. for permission to install one new joint owned pole and to replace and relocate one joint owned pole on the North Street right of way for the Medford Housing Authority Redevelopment at Walkling Court.

Wherefore it requests that after due notice and hearing as provided by law, it be granted a location for and permission to install one new joint owned pole (P#1065) and to replace and relocate one joint owned pole (P#1064) on the North Street right of way for the Medford Housing Authority Redevelopment at Walkling Court, Medford, MA 02155 as shown on the sketch plan #31339564 dated July 20, 2026 (the Plan) and received and filed in the Office of the City Clerk on September 16, 2026 and available for inspection in the Office of the City Clerk, Medford City Hall, Room 103, 85 George P. Hassett Drive, Medford, Massachusetts 02155.

The following are the recommendations from the Engineering Division:

The Engineering Division recommends that this grant of location be approved with the following conditions:

1. The Grant of Location (GOL) is limited to the addition of one joint owned utility pole located within the cement concrete sidewalk at the existing entrance to the Walkling Court Development on North Street and labeled P-1065 (Proposed) as depicted on the Sketch.
2. The GOL is conditioned on the removal and replacement of one existing joint owned pole currently in the North Street ROW and labeled P-1064 (Removed) as depicted on the sketch and replace the relocated pole 30-feet to the north and labeled P-1064 (Proposed).
3. Before starting work, the contractor shall notify Digsafe and shall obtain all applicable permits from the Engineering Division. The project must obtain a Public Right of Way Occupancy (PRO) permit pursuant to Section 74-141 of the City Ordinances prior to commencing work.
4. No other utility structures, conduits, duct banks, pipes, or any other appurtenances are adversely impacted. National Grid shall ensure that all sewer, water, and drain lines are marked prior to any excavation.
5. Placement of the joint owned utility pole must be within the 'furniture' zone and provide at least forty-inch (40") clearance of accessible travel path around the structure in accordance with ADA regulations and City standards. The placement of the joint owned utility pole must be no closer than 6-inches from the back of granite curb.

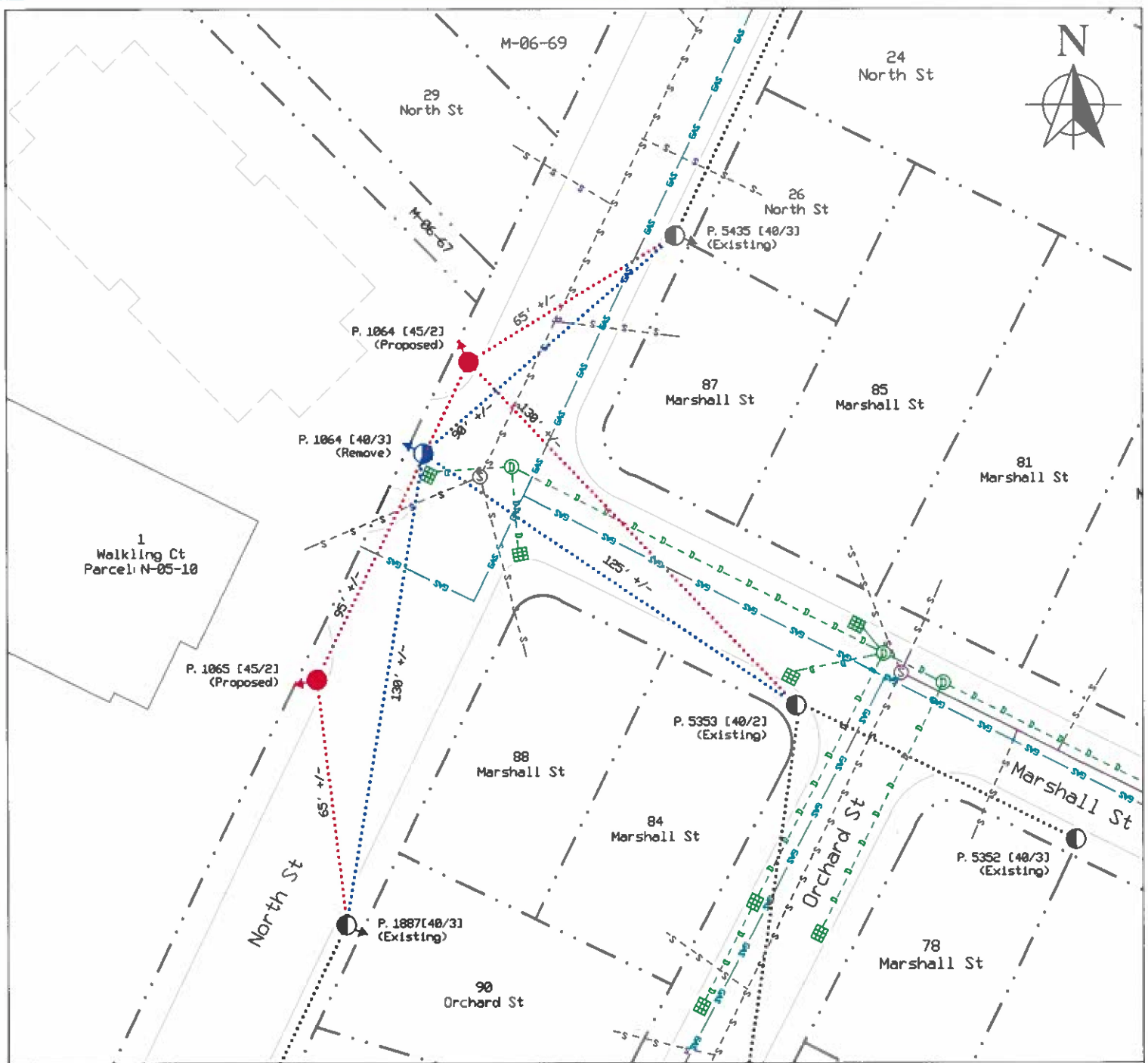
6. The cement concrete sidewalk restoration shall be done at the time of installation/removal and in consultation with the Engineering Division per the requirements of an approved PRO permit. Any concrete sidewalk damaged during this work must be replaced in-kind and cleanly cut at the control joints. Temporary patching using bituminous concrete pavement will not be permitted.

Call 781-393-2425 for any accommodations/aids.



Laurel Siegel
City Clerk

Plans can be viewed in the City Clerk's Office, 781-393-2425.



PETITION SKETCH

national grid

	Existing Pole		Existing Anchor/ Guy
	Proposed Pole		Proposed Anchor/ Guy
	Removed Pole		Removed Anchor/ Guy

Work Request: 31339564

5 Walkling Ct., Medford

Date: 07/20/2026

Drawn By: Ed Insogna

To The: City/Town Of Medford

Location: North Street

SCALE: 1" = 40'

For: Proposed Pole Installation & Relocation

Pg 1 of 1

	Proposed OH Conductor
	Removed OH Conductor
	Existing OH Conductor
	Property Lines
	Existing Stormwater Line
	Existing Sewer Line
	Existing Gas Line
	Existing Sewer Manhole
	Existing Stormwater Manhole
	Existing Stormwater Drain

Job Description
NGRID is petitioning to install (1) new pole (Pole #1065) and replace and relocate (1) existing pole (Pole #1064). Anchors and guy wires will be installed on both poles.

This work is needed due to the project for 5 Walkling Court which will modify the entrance to the parking lot on North St, requiring the pole to be relocated.

PUBLIC HEARINGS NOTICES

Medford Community Development Board: May 6, 2026

Medford City Council: May 26, 2026

Chapter 94, Zoning

The **Medford Community Development Board** shall conduct a public hearing on **May 6, 2026, after 6:30 p.m.** via Zoom relative to the following proposed amendment to the City of Medford Zoning Ordinance:

1. Amending section 94-8.1 (Inclusionary Housing) to include a new provision to allow for a fractional payments as follows:

Fractional units. *Where the required number of affordable units results in a fraction of a unit, at the election of the applicant for development, either (a) the required number of affordable units shall be rounded up to the nearest whole number, or (b) the applicant shall make a fractional cash payment to Medford's Affordable Housing Trust Fund. The fractional cash payment shall be equal to the fraction of the unit multiplied by the equivalent value of an affordable unit. The equivalent value of the affordable unit shall be based on the then-applicable Total Development Cost as articulated in the EOHLC Qualified Allocation Plan for Low Income Housing Tax Credits, for the areas described as Within Metro Boston/Urban Area (as adjusted for the type of project and number of units). This value shall be reviewed and confirmed by staff of the office of community development. The applicant shall make their election prior to submitting a site plan review application by notifying the office of community development in writing. The payment to the Medford Affordable Housing Trust Fund shall be calculated at the time of the building permit application and due prior to the issuance of the building permit or as agreed to in a fee payment agreement.*

A subsequent public hearing on the same matter will be held by the **Medford City Council** on **May 26, 2026, after 7pm** in the Medford City Council Chamber, on the second floor of Medford City Hall, 85 George P. Hassett Drive, Medford, MA, and via Zoom.

The Zoom links to the hearings will be posted on the City website calendar 48 hours in advance of the meetings. The full text of the amendment can be viewed in the Office of Planning, Development, and Sustainability (City Hall, Room 308) or on the City's website at <https://www.medfordma.org/boards-commissions/community-development-board> by clicking on 'Current CD Board Filings.'



Email ocd@medford-ma.gov or call 781-393-2480 with questions, please submit written comments to the CDB is via the new public comment form: <https://tinyurl.com/MedfordCDB>

If you need a reasonable accommodation to attend/participate in this meeting, please contact the ADA Coordinator: Frances N. Nwajei at 781-393-2439 or via email at fnwajei@medford-ma.gov. Please note that while the City will make every effort to fulfill the request, some requests may not be fulfilled due to the hiring and availability of outside contractors.



City of Medford

Office of Planning, Development and Sustainability

City Hall - Room 308
85 George P. Hassett Drive
Medford, Massachusetts 02155

(781)393-2480
Fax: (781)393-2342
ocd@medford-ma.gov

Contact:

To: City Council President Zac Bears and Honorable Members of the City Council
From: Danielle Evans, Senior Planner, Office of Planning, Development, and Sustainability *on behalf of* the City of Medford Community Development Board
Date: August 19, 2026
RE: Proposed Amendment to Section 94-8.1 (Inclusionary Housing).

In accordance with the provisions of M.G.L. c.40A, s. 5. the City of Medford Community Development Board ("CDB") held a duly noticed public hearing on August 12, 2026 to make a recommendation on an amendment to Section 94-8.1 (Inclusionary Housing) of the Zoning Ordinance. Specifically, the proposed amendment would allow for the option to elect to make a fractional payment to the Affordable Housing Trust Fund when the required number of affordable units results in a fraction of a unit that is less than one-half of a unit.

Board members present at the meeting were Chair Doug Carr, Member John Anderson, Member Sean Beagan, Member Page Buldini, Member Dina Colagerro, and Member Ari Fishman. After consideration of the request, the CDB voted unanimously 6-0 to submit the zoning amendment to City Council.

The recommended amendment language, which describes the proposed process and calculation method, along with a calculation example for explanatory purposes are attached to this memorandum as Attachments A and B.

cc: Breanna Lungo-Koehn, Mayor
Alicia Hunt, Director of Planning, Development, and Sustainability
Laurel Siegel, City Clerk

Attachment A

Amend Section 94-8.1.7.1 as follows:

Deleted text is indicated by a strikethrough.

Inserted text is underlined.

1. ***Fractional units.*** ~~Where the required number of affordable units results in a fraction of a unit the required number of affordable units shall be rounded up to the nearest whole number.~~

(a) Where the required number of affordable units results in a fraction of a unit that is one-half (1/2) of a unit or greater, the required number of affordable units shall be rounded up to the nearest whole number.

(b) Where the required number of affordable units results in a fraction of a unit that is less than one-half (1/2) of a unit, at the election of the applicant for development, either (i) the required number of affordable units shall be rounded up to the nearest whole number, or (ii) the applicant shall make a fractional cash payment to Medford's Affordable Housing Trust Fund. The fractional cash payment shall be equal to the fraction of the unit, rounded to the nearest tenth, multiplied by the difference between (x) the fair market value of the unit and (y) the maximum sale price for a comparable affordable unit. The fair market value of the unit shall be determined by the average of at least two (2) real estate comparables for similar units to be provided by the applicant, which comparables shall be reasonably acceptable to staff of the Office of Community Development and shall be subject to the regulations promulgated by the Community Development Board. The maximum sale price for a comparable affordable unit shall be based on the formula set forth in Section VI.B.6. of the Guidelines for G.L. C. 40B Comprehensive Permit Projects Subsidized Housing Inventory established by the Massachusetts Executive Office of Housing and Livable Communities (EOHLC) dated December 2014, or such guidelines or formula as may subsequently be promulgated by EOHLC.

(c) The applicant shall make their election pursuant to paragraph (b) prior to submitting a site plan review application by notifying the Office of Community Development in writing. The payment to the Medford Affordable Housing Trust Fund shall be calculated at the time of the building permit application and due prior to the issuance of the building permit or as agreed to in a fee payment agreement as determined by staff of the Office of Community Development.

(d) Any fractional payment made pursuant to this ordinance shall not be counted toward achieving any development incentive bonus.

Attachment B

Calculation Example: 24-unit residential development comprised of 2-bedroom units.

Under the current Inclusionary Housing ordinance, a 24-unit development is required to set aside 10% of the units as Affordable Units rounded up to the next whole number. As the fractional amount is below 0.5, the applicant can either (1) provide the three Affordable Units on site OR (2) provide two Affordable Units on site *and* make a cash payment equal to the fractional value (0.4) of an Affordable Unit.

Option #1		Option #2	
Total Units	24.0	Total Units	24.0
Required Affordable Units (10%)	2.4	Required Affordable Units (10%)	2.4
Required Affordable Units (on site)	3.0	Required Affordable Units (on site)	2.0
		Fractional Payment (equal to 0.4 of an Affordable Unit)	\$160,000

The fractional cash payment is equal to 40% of the difference in value between a comparable fair market-rate unit and the Affordable Unit. To determine the value of the Affordable Unit, the hypothetical maximum sales price of the Affordable Unit is used, regardless of whether the development is proposed as rental housing or for-sale condominiums.

Fair Market Rate Unit Value	\$800,000
Affordable Unit Value (Maximum Sales Price of Affordable Unit 80% AMI)	\$398,000
Difference in Value ("Subsidy Gap")	\$400,000
Fractional Payment Multiplier	0.4
Fractional Payment (40% of Subsidy Gap)	\$160,000

For a two-bedroom Affordable Unit, the maximum sales price is calculated based on monthly housing payments (principal, interest, taxes, insurance, and condo fees) equal to 30% of the monthly income of a three-person household earning 80% of the Area Median Income.

Maximum Sales Price of Affordable Unit (80% AMI)	\$398,000.00
Mortgage Amount (based on 5% downpayment)	\$378,100.00
Monthly Payments	
Principal and Interest (based on 30-year fixed rate mortgage)	\$2,328.00
Taxes/Insurance/Condo Fees (combined)	\$757.00
Total Monthly Payment (30% of monthly income)	\$3,085.00

# of Bedrooms	Household Size	Annual Income 80% AMI	Monthly Income	30% of Monthly Income
2-bedroom	3-person	\$123,400	\$10,283.33	\$3,085.00

August 4, 2026

26-142B

Council Response to Paper 26-142

Offered by President Bears

Motion to Approve: Councilor Tseng

Approved Unanimously

Whereas, the Medford City Council unanimously approved Resolution 26-043 on February 24, 2026 requesting a comprehensive litigation report from the City Administration regarding the significant increase in legal claims against the City of Medford since January 2020 and the financial cost of the City Administration's decisions regarding litigation strategy and employee relations to the city and its residents; and,

Whereas, the Medford City Council unanimously approved Resolution 26-077 on April 28, 2026 to file a Public Records Request pursuant to state law due to the City Administration's lack of response to the prior request; and,

Whereas, the Medford City Council took numerous votes and councilors provided clarity and guidance to the City Administration at dozens of public City Council meetings since February 2026 regarding the information requested in the above resolutions; and,

Whereas, the Medford City Council has only received partial and significantly delayed responses from the City Administration, including information never requested by the Council; and,

Whereas, the Medford City Council was forced to reduce the FY27 Law Department budget due to lack of information about past legal expenses and planned FY27 legal expenses in order to exercise basic oversight and transparency regarding the FY27 City Budget; and,

Whereas, the City Administration has made repeated statements that they are not capable of meeting these requests even after repeated clarifications by the Council; and,

Whereas, the Medford City Council received a document today, August 4, 2026, summarizing KP Law expenditures since January 2020 with a total sum of \$2.4 million; and,

Whereas, the Chief of Staff informed the City Council by email that she is not able to attend tonight's meeting due to a prior commitment and requested that the Council refer any additional questions to the Mayor and Chief of Staff; now, therefore:

Be it Resolved by the Medford City Council that we request the following from the City Administration:

1. A written response to Resolution 26-043 with the status of each requested item in the Comprehensive Litigation Report and Quarterly Litigation Status Report, including an explanation of what efforts have been made to respond to each request and why the City Administration cannot provide the requested information, if necessary. This explanation may also include any efforts made to respond to the Public Records Request authorized by the Council in Resolution 26-077.
2. A written response to Resolution 26-043's request for an independent review of the City's litigation costs, practices, and risk management procedures.
3. A categorization of the August 4, 2026 list of KP Law expenditures into the following categories:
 - i. Collective bargaining negotiation expenses
 - ii. Employee litigation, arbitration, grievance, or other settlement-related expenses
 - iii. Legal review of ordinances or board and commission proceedings
 - iv. Non-employee claims and litigation (e.g. vehicle or sewer claims)
 - v. Provision of legal guidance to city staff regarding administrative actions
 - vi. Other legal work
4. A similar report and categorization of expenditures for any other outside legal services provided by firms other than KP Law since 2020.
5. A financial summary of all settlements or judgments against the city for claims over \$10,000 since 2020, including the amount paid by the city for each claim and the source of funds used to make payment.
6. A list and total estimated cost of all budgeted legal expenses for the FY27 city budget in department budgets other than the Law Department.
7. An update on the hiring of a City Solicitor and when the job will be posted.

Be it Further Resolved that the Medford City Council hopes that this further written clarification of its numerous and repeated requests for information since February 2026 will provide the City Administration with appropriate guidance to meet these requests and provide a transparent and full accounting of the city's legal expenses since 2020 to the residents of Medford.

Be it Further Resolved that this resolution be submitted to the City Administration immediately and the text be placed on the September 15, 2026 City Council Regular Meeting Agenda as Paper 26-142B along with any written responses received from the City Administration by September 10.



Outlook

Resolution 26-142

From Breanna Lungo-Koehn <blungokoehn@medford-ma.gov>

Date Mon 8/31/2026 10:32 AM

To City Council <council@medford-ma.gov>; City Council Members <ccmembers@medford-ma.gov>

Cc Nina Nazarian <nnazarian@medford-ma.gov>

President Bears & City Councilors,

I wanted to check in regarding Resolution 26-142.

First, I reached out to the Collins Center, which is the only organization I can think of that may do a litigation review. The Director responded that they have not done a litigation review before and he doesn't think it is something they have expertise in.

Please let me know of a couple companies or organizations who do a litigation review, and we will reach out for quotes as I have no problem doing one. I actually welcome it very much, because after our bond call last week it is even more clear what is going on. They are aware of the publicity this topic has produced and one of the first questions asked to us was if this was "all just noise." They asked that because from their review our liability is low.

It was upsetting that this issue has made its way to the bond rating agencies, which while remote, could jeopardize our rating as we all know how important a good rating is for the projects we are doing and more importantly for the new high school. I let S&P know that these same campaign tactics were used against me in 2021 and are now resurfacing as a personal attack against me to try to ruin my character and question my integrity, while someone positions for the first ever four-year Mayoral term.

The reality is that the same people saying there are too many lawsuits, legal fees and settlements are the very same people who are pushing others to sue (Mike, Mark, SS, etc).

We have provided you with all of the KP law bills and do not have the resources to categorize them, but please feel free to set up a committee to do so.

We will work to gather similar reports from all other outside legal firms since 2020 and send them as soon as we collect them all.

I believe we sent you all settlements and judgements over \$25k and we are now working on a list of all settlements from \$10k – \$25k per your request. We will send those to you asap.

We are going to send the Council all the line items in FY27 within the budget where we may pay for legal services with.

As soon as we receive the full FY27 legal funding we will post for a solicitor and work on the many other things we need continued legal support for such as the grant agreement with

MFN, etc.

Please do not hesitate to call me with any questions.

Sincerely,
Mayor Breanna



**MEDFORD, MASSACHUSETTS
MAYOR BREANNA LUNGO-KOEHN**

September 25, 2026

Via Electronic Delivery

To the Honorable President and
Members of the Medford City Council
Medford City Hall
Medford, MA 02155

Re: Response to Council Resolution No. 26-142B

Dear President Bears and Members of the City Council:

I am writing on Council Resolution No. 26-142B. Below, please find a summary of the communications we have sent in response to this resolution. Based on this information, we respectfully request that the Council approve the attached FY27 Supplemental Appropriation request dated July 30, 2026, to restore the Law Department's budget. Adequate funding for the Law Department is necessary to ensure that the City has sufficient resources to address ongoing legal matters, including litigation, claims, contracts, and other legal obligations that arise in the normal course of City operations. Restoring the requested funding will help ensure that these matters can continue to be handled appropriately and without disruption to City operations.

From 26-142B:

1. **Response to Resolution 26-043** – I believe the Council knows that we reviewed the resolution and much like the public records request (Resolution 26-077), the level of information and granularity requested is a significant challenge considering that information is dispersed across multiple departments and filing systems. My administration repeatedly requested opportunities to discuss the requests, with our initial response to the first resolution dating back to April of 2026 and ultimately we appreciate the Council responding in August with a consolidated version of the collective requests. We believe the Council is intimately aware of the limited resources available throughout the City and we have made our best faith efforts to be responsive to the council's requests, however we have been further challenged with ongoing projects and efforts that draw on City resources (e.g. budget season, School building projects, especially the planning for the new high school, Medford Square development, payroll compliance with the OBBB Act, etc.). We also provided the attached email, which contained an attachment with 74 pages, dated August 1, 2026 regarding the sheer magnitude of Resolution Nos. 26-043 and 26-077.
2. **Independent Review of the City's Litigation Costs** – Please see the attached email, dated August 31st.



**MEDFORD, MASSACHUSETTS
MAYOR BREANNA LUNGO-KOEHN**

3. **Categorization of the August 4th List of KP Law Expenditures** – Please see the attached email, dated August 31st.
4. **A Similar Report and Categorization of Expenditures for Other Outside Legal Services Provided by Firms other than KP Law Since 2020** – Please see attached email, dated September 14, 2026. In addition, the City also paid Sullivan and Reed, LLP on order of \$63,000 in 2020 and 2021.
5. **Financial Summary of All Settlements or Judgements against the City for claims over \$10k** – The following is a financial summary of what we believe to be all settlements or judgments against the City for claims over \$10,000 since 2020, by the source of funds:
 - a. Building Department Budget - \$28,885
 - b. Clerk's Office Budget – \$48,056
 - c. DPW Appropriation - \$235,000
 - d. Fire Department Budget - \$62,101
 - e. HR Department Budget – \$11,371
 - f. Insurance Budget - \$80,000
 - g. Law Department Budget – \$550,057
 - h. School Department Budgets - \$1,074,501
 - i. Workers' Compensation Budget - \$165,000

Please note that we did not request School settlements between \$10 and \$25k for this exercise. We previously had the amounts from Schools for over \$25k which is how we were able to supply the agreements in June of this year over 5 emails to the Council.

6. **List and Total Estimated Cost of all Budgeted Legal Expenses for the FY27 City budget in Department Budgets** – Please see attached email, dated September 13, 2026.

In summary, my Administration has made a good-faith effort to respond to the requests outlined in Resolution 26-142B and has provided the information available through the City's various departments, records, and financial systems. While we recognize the Council's interest in understanding the City's legal expenditures and obligations, responding to these requests has required a significant amount of staff time and resources across the organization. At the same time, the City continues to manage ongoing legal matters and other obligations that require timely attention and appropriate legal resources. For these reasons, we respectfully request that the Council approve the attached FY27 Supplemental Appropriation to restore the Law Department's budget and ensure that sufficient funding is available to address the City's ongoing legal obligations and maintain the continuity of normal City operations.

Thank you for your kind attention to this matter.



**MEDFORD, MASSACHUSETTS
MAYOR BREANNA LUNGO-KOEHN**

Sincerely,

A handwritten signature in blue ink, appearing to read "Breanna Lungo-Koehn", is written over the printed name.

Breanna Lungo-Koehn
Mayor



**MEDFORD, MASSACHUSETTS
MAYOR BREANNA LUNGO-KOEHN**

July 30, 2026

Via Electronic Delivery

To the Honorable President and
Members of the Medford City Council
Medford City Hall
85 George P. Hassett Drive
Medford, MA 02155

Re: Supplemental Appropriation for the Fiscal Year 2027

Dear President Bears and Members of the City Council:

I respectfully request and recommend that your Honorable Body approves the following supplemental appropriation for Fiscal Year 2027, to restore the Law Department budget, which was originally proposed in a June 4, 2026 submission to the City Council.

	Mayor Proposed 6/4/26	City Council Cut on 6/23/26
Salaries	\$230,866.60	\$182,576.33
Ordinary	\$298,700.00	\$242,500.00
Total	\$529,566.60	\$425,076.33

And to meet this appropriation, the sum of Four Hundred Twenty-Five Thousand Seventy-Six Dollars and Thirty-Three Cents (\$425,076.33) be raised and appropriated from the Fiscal Year 2026 tax levy.

Over the past several weeks, we have made a thoughtful effort to engage with the Council on this appropriation as well as the provisions of legal documents responsive to your records requests. On May 13th, we responded to the Council's public records request, noting that Item (a) alone, of the nine requested items, would take an estimated 395 hours to review just email records.

On June 16th, we supplied the Council with 130 pages of City-side settlements and School-side settlements between 2020 and the Council's request.

On June 23rd, we provided the spending detail in the Fire Department Professional Services line as well as an outline of other legal expenditures incurred by the City in Fiscal Year 2026 budget. You may recall, I wrote to the full Council on June 3rd offering to discuss the most effective process for providing those materials. My Chief of Staff also requested at both the June 9th and June 23rd Council meetings that the Council designate a member to work with our office on this matter. We unfortunately have yet to receive a response.



**MEDFORD, MASSACHUSETTS
MAYOR BREANNA LUNGO-KOEHN**

Most recently, on July 23rd, we supplied an updated breakdown of Medford's FY26 budget legal spending compared to other communities and on the same date, I emailed the Council President asking how we can reach an understanding so that my office could begin working a grant agreement to help fund Medford Family Network, begin the recruitment process for a new arts liaison position, and other budget priorities. I have not heard back on this request as of yet.

My administration has consistently sought to engage with the Council in a collaborative and transparent manner, and we remain committed to doing so. However, our repeated requests for coordination and communication with the Council have thus far gone unanswered. It is important that we receive direction and feedback from the Council collectively, or at least from a majority of its members, so that we can be confident we are proceeding in accordance with the Council's expectations and are not expending City staff time and resources pursuing work that may ultimately prove unnecessary or incomplete.

Thank you for your kind attention to this matter.

Sincerely,


Breanna Lungo-Koehn
Mayor

Nina Nazarian

From: Nina Nazarian
Sent: Saturday, August 1, 2026 1:17 PM
To: Breanna Lungo-Koehn
Subject: Claims Paperwork Starting in 2020
Attachments: 2020 Law Dept. Files Batch 1_Redacted.pdf

Dear President Bears and City Councilors,

As an example of the sheer magnitude of the Council's records requests, attached please find 1 of 5 scans completed by Office Manager Spencer this past week for claim files in the Law Department. As you will see in the attached, this file and likely all the files then must undergo a review for redactions (check numbers, account numbers, SSN numbers, etc.). We hope this helps illustrate the significant burden of the voluminous request by the Council.

Please do not hesitate to contact me with any questions.

Sincerely,

Nina

--

Nina Nazarian
Chief of Staff | Office of Mayor Breanna Lungo-Koehn
City of Medford
85 George P. Hassett Drive, Medford, MA 02155
781-393-2408
nnazarian@medford-ma.gov
she/her/hers

Please note: The Commonwealth of Massachusetts considers most electronic communications to and from public employees to be public records and disclosable under the Massachusetts Public Records Law and its regulations. *Please consider the environment before printing this email.*

Nina Nazarian

From: Breanna Lungo-Koehn
Sent: Monday, August 31, 2026 10:32 AM
To: City Council; City Council Members
Cc: Nina Nazarian
Subject: Resolution 26-142

President Bears & City Councilors,

I wanted to check in regarding Resolution 26-142.

First, I reached out to the Collins Center, which is the only organization I can think of that may do a litigation review. The Director responded that they have not done a litigation review before and he doesn't think it is something they have expertise in.

Please let me know of a couple companies or organizations who do a litigation review, and we will reach out for quotes as I have no problem doing one. I actually welcome it very much, because after our bond call last week it is even more clear what is going on. They are aware of the publicity this topic has produced and one of the first questions asked to us was if this was "all just noise." They asked that because from their review our liability is low.

It was upsetting that this issue has made its way to the bond rating agencies, which while remote, could jeopardize our rating as we all know how important a good rating is for the projects we are doing and more importantly for the new high school. I let S&P know that these same campaign tactics were used against me in 2021 and are now resurfacing as a personal attack against me to try to ruin my character and question my integrity, while someone positions for the first ever four-year Mayoral term.

The reality is that the same people saying there are too many lawsuits, legal fees and settlements are the very same people who are pushing others to sue (Mike, Mark, SS, etc).

We have provided you with all of the KP law bills and do not have the resources to categorize them, but please feel free to set up a committee to do so.

We will work to gather similar reports from all other outside legal firms since 2020 and send them as soon as we collect them all.

I believe we sent you all settlements and judgements over \$25k and we are now working on a list of all settlements from \$10k – \$25k per your request. We will send those to you asap.

We are going to send the Council all the line items in FY27 within the budget where we may pay for legal services with.

As soon as we receive the full FY27 legal funding we will post for a solicitor and work on the many other things we need continued legal support for such as the grant agreement with MFN, etc.

Please do not hesitate to call me with any questions.

Sincerely,
Mayor Breanna

Nina Nazarian

From: Nina Nazarian
Sent: Monday, September 14, 2026 8:04 PM
To: City Council Members
Cc: Breanna Lungo-Koehn
Subject: Response to Council 26-142B
Attachments: Clifford and Kenny Medford Billing Summary.pdf; Melick & Porter.pdf; O'Hagan Meyer-Fees_and_Expenses 2020-Current City of Medford.pdf; P&A - Medford FY20-FY26.pdf; P&A - Medford -FY14 to FY20.pdf; Seyfarth Shaw.pdf; Binder1_Redacted.pdf

Dear President Bears and City Councilors:

Pursuant to item 4 in 26-142B, attached please find reports and categorizations of expenditures for other outside legal services provided by firms other than KP Law since 2020, on the City side (i.e. this is not a complete picture of all school items billed):

- Clifford and Kenny
- Melick & Porter
- O'Hagan Meyer
- Peabody & Arnold (two reports, one for FY2014 to FY2020 and the other is 2020 and forward. As you can see for comparison, there were more cases prior to 2020. Note that many of the cases on the 2020 to present are Schools and we do not have detailed information on many of those.)
- Seyfarth Shaw

It occurred to me today that we inadvertently did not request a report from Sullivan and Reed LLP for a report, but we continued with the labor counsel that former Mayor Stephanie Burke used. We also paid that firm \$63,000, according to the City's financial software for payments made from January 2020 forward.

We have been working on these responses to the Council's 26-142B paper for the last several weeks, thanks to the clarifications that the Council provided. We believe this is the final piece necessary to complete our response and recognize that the Council may need additional time to review it. Accordingly, unless I hear otherwise, I will plan to be present at the September 29 meeting.

Please consider the impact that these public discussions and correspondence may have on a number of different things, such as our bond rating, party(s) who may be interested in suing, particularly when the Council publicly discloses settlement amounts and the lack of legal support (i.e., the budget available to defend claims from the Council's cuts) without a complete legal understanding of each matter. On many occasions, the Mayor has invited Council members to contact her with any questions, and we continue to extend that invitation on any claim, etc.

We recommend that the names of individuals identified in the attached cases be redacted prior to release. For that reason, I am attaching a single file containing all of the attachments with the names redacted.

Thanks,

Nina

--

Nina Nazarian
Chief of Staff | Office of Mayor Breanna Lungo-Koehn
City of Medford
85 George P. Hassett Drive, Medford, MA 02155
781-393-2408
nnazarian@medford-ma.gov
she/her/hers

Please note: The Commonwealth of Massachusetts considers most electronic communications to and from public employees to be public records and disclosable under the Massachusetts Public Records Law and its regulations. *Please consider the environment before printing this email.*

KP LAW, P.C.

Billed

ClientSort	TOTAL BILLED	BILLED	
	Fees/Disb.	Fees	Disb.
Matter Description (First Line): 2023 RECOUNT	\$12,093.53	\$12,060.00	\$33.53
Matter Description (First Line): 400 RIVERSIDE (R)	\$3,031.30	\$3,015.65	\$15.65
Matter Description (First Line): 40B	\$4,016.40	\$4,006.50	\$9.90
Matter Description (First Line): ALLSTATE/DILLON V. MEDFORD	\$956.00	\$956.00	\$0.00
Matter Description (First Line): ALLSTATE/SIMPSON V. MEDFORD	\$810.00	\$810.00	\$0.00
Matter Description (First Line): AMATO V. CHIEF OF POLICE	\$1,274.00	\$1,274.00	\$0.00
Matter Description (First Line): AMICO, ANGELO V. CITY OF MEDFORD	\$3,355.26	\$3,352.50	\$2.76
Matter Description (First Line): ANALETTO V. ZBA	\$22,173.21	\$22,027.50	\$145.71
Matter Description (First Line): ANTOINE V. CHIEF OF POLICE	\$2,197.10	\$2,133.00	\$64.10
Matter Description (First Line): ARBELLA V. MEDFORD	\$1,260.00	\$1,260.00	\$0.00
Matter Description (First Line): ARBELLA/DEALMEID A V. MEDFORD	\$4,509.00	\$4,509.00	\$0.00
Matter Description (First Line): ARPA	\$6,450.00	\$6,450.00	\$0.00
Matter Description (First Line): ATIYAT V. CITY OF MEDFORD	\$1,820.00	\$1,820.00	\$0.00
Matter Description (First Line): ATIYAT WAGE GARNISHMENT	\$831.00	\$831.00	\$0.00
Matter Description (First Line): AYALA V. MEDFORD	\$32,412.37	\$32,345.50	\$66.87
Matter Description (First Line): AYELE TRUSTEE PROCESS	\$837.00	\$837.00	\$0.00

KP LAW, P.C.

Billed

ClientSort	TOTAL BILLED	BILLED	
	Fees/Disb.	Fees	Disb.
Matter Description (First Line): BARTLETT V. CITY	\$8,005.57	\$7,969.00	\$36.57
Matter Description (First Line): BAYLISS V. CHIEF OF POLICE	\$2,216.10	\$2,160.00	\$56.10
Matter Description (First Line): BJ'S WHOLESALE CLUB V. CITY	\$8,519.00	\$8,479.00	\$40.00
Matter Description (First Line): BLACQUIER GRIEVANCE	\$3,797.00	\$3,797.00	\$0.00
Matter Description (First Line): BOARD OF HEALTH V. BARBARA H. SMITH	\$1,225.00	\$1,225.00	\$0.00
Matter Description (First Line): BUCKLEY V. CITY OF MEDFORD	\$12,895.63	\$12,101.00	\$794.63
Matter Description (First Line): BUILDING INSPECTOR INVESTIGATION	\$196.00	\$196.00	\$0.00
Matter Description (First Line): CABLE TV	\$7,635.00	\$7,635.00	\$0.00
Matter Description (First Line): CARDILLO V. MEDFORD	\$51,894.10	\$49,974.00	\$1,920.10
Matter Description (First Line): CASINO - SURROUNDING COMMUNITY AGREEMENT	\$2,455.00	\$2,455.00	\$0.00
Matter Description (First Line): CENTRELLA ET AL. V. BJS WHOLESALE AND MEDFORD CITY COUNCIL	\$3,249.71	\$3,175.00	\$74.71
Matter Description (First Line): CHERTOK ET AL. V. CITY	\$36,421.27	\$35,308.00	\$1,113.27
Matter Description (First Line): CLERICAL NEGOTIATIONS	\$10,286.00	\$10,266.00	\$20.00
Matter Description (First Line): COMBINED PROPERTIES, INC. 40B	\$7,086.00	\$7,048.00	\$38.00

KP LAW, P.C.

Billed

TOTAL BILLED		BILLED	
ClientSort	Fees/Disb.	Fees	Disb.
Matter Description (First Line): COMMUNITY DEVELOPMENT BOARD (R)	\$25,033.71	\$24,735.07	\$298.64
Matter Description (First Line): CONBOY V. CITY OF MEDFORD	\$16,841.30	\$16,822.00	\$19.30
Matter Description (First Line): CONBOY V. MEDFORD/DUA	\$4,070.39	\$4,059.00	\$11.39
Matter Description (First Line): CONBOY/CIVIL SERVICE APPEAL	\$1,427.50	\$1,427.50	\$0.00
Matter Description (First Line): CONDELLI V. CHIEF OF POLICE	\$894.78	\$832.00	\$62.78
Matter Description (First Line): CONDUCT INVESTIGATION INTO PARKING DEPARTMENT	\$2,075.00	\$2,075.00	\$0.00
Matter Description (First Line): CONNORS, ET. AL V. CITY OF MEDFORD	\$5,118.50	\$5,118.50	\$0.00
Matter Description (First Line): CONSTANCE WHITE (USAA CASUALTY) V. CITY OF MEDFORD	\$1,809.81	\$1,775.00	\$34.81
Matter Description (First Line): CONTRACTS (R)	\$95,149.87	\$94,569.05	\$580.82
Matter Description (First Line): COTE V. MEDFORD - POLICE DEPT	\$2,586.73	\$2,276.00	\$310.73
Matter Description (First Line): COVID-19	\$17,984.42	\$17,977.50	\$6.92
Matter Description (First Line): CURRAN V. TRAFFIC COMMISSION	\$3,510.62	\$3,388.00	\$122.62
Matter Description (First Line): DASILVA V. CITY	\$18,725.81	\$18,669.00	\$56.81
Matter Description (First Line): DEOLIVEIRAMIRND V. MEDFORD - DPW/SNOW PLOW	\$3,554.00	\$3,554.00	\$0.00

KP LAW, P.C.

Billed

TOTAL BILLED		BILLED	
ClientSort	Fees/Disb.	Fees	Disb.
Matter Description (First Line): DISPATCH UNION CONTRACT NEGOTIATIONS	\$8,284.24	\$8,276.00	\$8.24
Matter Description (First Line): DPW/ARBITRATION/ALL AFFECTED EMPLOYEES	\$2,253.00	\$2,253.00	\$0.00
Matter Description (First Line): DPW/ARBITRATION/D RUG TESTS	\$1,048.00	\$1,048.00	\$0.00
Matter Description (First Line): DPW/ARBITRATION/GOOD FRIDAY GRIEVANCE	\$336.00	\$336.00	\$0.00
Matter Description (First Line): DPW/ARBITRATION/MALERBA AND SMITH	\$81.00	\$81.00	\$0.00
Matter Description (First Line): DPW/ARBITRATION/S CARAMUZZO GRIEVANCE	\$392.00	\$392.00	\$0.00
Matter Description (First Line): DURBIN V. CITY OF MEDFORD	\$1,316.00	\$1,316.00	\$0.00
Matter Description (First Line): DURHAM V. MEDFORD	\$12,923.00	\$12,923.00	\$0.00
Matter Description (First Line): ENERGY/SOLAR CONTRACTING AND PROJECTS	\$28,459.01	\$28,440.00	\$19.01
Matter Description (First Line): ENGLEHUTT CONDOS V. CITY	\$1,414.00	\$1,414.00	\$0.00
Matter Description (First Line): EXAVIER V. CHIEF OF POLICE	\$4,971.29	\$4,913.00	\$58.29
Matter Description (First Line): FAGONE V. CITY	\$5,212.00	\$5,212.00	\$0.00
Matter Description (First Line): FARGO V. MEDFORD	\$8,052.58	\$7,942.00	\$110.58

KP LAW, P.C.

Billed

TOTAL BILLED		BILLED	
ClientSort	Fees/Disb.	Fees	Disb.
Matter Description (First Line): FIRE DEPARTMENT INVESTIGATION	\$8,582.00	\$8,582.00	\$0.00
Matter Description (First Line): FIRE DEPARTMENT SICK USE REVIEW	\$10,231.00	\$10,231.00	\$0.00
Matter Description (First Line): FIRE/ ZIOBRO/ IOD/ ARBRITRATION	\$2,850.50	\$2,850.50	\$0.00
Matter Description (First Line): FIRE/ARBITRATION/A HERN GRIEVANCE	\$3,009.05	\$2,996.00	\$13.05
Matter Description (First Line): FIRE/ARBITRATION/A HERN SICK TIME DISCIPLINE	\$4,158.00	\$4,158.00	\$0.00
Matter Description (First Line): FIRE/ARBITRATION/A HERN TERMINATION	\$280.00	\$280.00	\$0.00
Matter Description (First Line): FIRE/ARBITRATION/D AVIS SICK NOTE	\$486.00	\$486.00	\$0.00
Matter Description (First Line): FIRE/ARBITRATION/D UNN TERMINATION	\$1,111.00	\$1,111.00	\$0.00
Matter Description (First Line): FIRE/ARBITRATION/H ALLORAN DISCIPLINE	\$19,287.89	\$19,161.00	\$126.89
Matter Description (First Line): FIRE/ARBITRATION/H ALLORAN/DEMOTION	\$23,408.47	\$23,338.00	\$70.47
Matter Description (First Line): FIRE/ARBITRATION/M CELENY GRIEVANCE	\$644.00	\$644.00	\$0.00
Matter Description (First Line): FIRE/ARBITRATION/O T AND DETAIL HIRING	\$13,419.18	\$13,412.00	\$7.18

KP LAW, P.C.

Billed

TOTAL BILLED		BILLED	
ClientSort	Fees/Disb.	Fees	Disb.
Matter Description (First Line): FIRE/ARBITRATION/P ROMOTIONAL PAY STEP	\$3,699.00	\$3,699.00	\$0.00
Matter Description (First Line): FIRE/ARBITRATION/SI CK LEAVE LETTERS	\$13,797.62	\$13,787.00	\$10.62
Matter Description (First Line): FIRE/ARBITRATION/SI CK MEMO	\$5,574.00	\$5,574.00	\$0.00
Matter Description (First Line): FIRE/ARBITRATION/W HITE DISCIPLINE	\$28,635.40	\$28,620.00	\$15.40
Matter Description (First Line): FIRE/CIVIL SERVICE/DUNN APPEAL	\$1,596.00	\$1,596.00	\$0.00
Matter Description (First Line): FIRE/CIVIL SERVICE/HALLORAN APPEAL	\$3,971.00	\$3,971.00	\$0.00
Matter Description (First Line): FIRE/CIVIL SERVICE/MCDONALD INVESTIGATION	\$4,536.00	\$4,536.00	\$0.00
Matter Description (First Line): FIRE/DLR/ULP/CIVIL SERVICE EXAMS	\$702.00	\$702.00	\$0.00
Matter Description (First Line): FIRE/ULP/AMBULANC E SERVICES	\$504.00	\$504.00	\$0.00
Matter Description (First Line): FIRE/ULP/OT DETAIL BYPASS	\$388.00	\$388.00	\$0.00
Matter Description (First Line): FIREFIGHTERS LOCAL 1032 V. CITY OF MEDFORD	\$20,749.03	\$20,682.00	\$67.03
Matter Description (First Line): FORCELLATI V. MEDFORD	\$6,652.19	\$6,542.00	\$110.19
Matter Description (First Line): G & R CONSTRUCTION, INC. V. CITY OF MEDFORD	\$56,124.90	\$55,220.00	\$904.90

7/28/2026 2:43:29 PM

Page 6 of 13

statement date >=7/1/19 and statement date <=6/30/26 and matter id contains '17600' statement

KP LAW, P.C.

Billed

TOTAL BILLED		BILLED	
ClientSort	Fees/Disb.	Fees	Disb.
Matter Description (First Line): GALE V. MEDFORD	\$6,275.61	\$6,225.00	\$50.61
Matter Description (First Line): GEICO A/S/O WOLDEMARIAM V. CITY	\$3,220.00	\$3,220.00	\$0.00
Matter Description (First Line): GEICO INSURANCE CO. AS SUBROGEE FOR NGUYEN V. CITY OF MEDFORD	\$3,343.00	\$3,343.00	\$0.00
Matter Description (First Line): GENERAL LABOR SERVICES (R)	\$190,124.62	\$162,503.44	\$27,621.18
Matter Description (First Line): GENERAL LEGAL SERVICES(R)	\$297,818.55	\$289,974.79	\$7,843.76
Matter Description (First Line): GIGANTE V. STATE HUMAN RESOURCES DIVISION	\$375.00	\$375.00	\$0.00
Matter Description (First Line): GILLIS V. CITY CLERK	\$3,411.08	\$3,383.00	\$28.08
Matter Description (First Line): GIORDANO V. MEDFORD	\$3,506.02	\$3,484.00	\$22.02
Matter Description (First Line): GUIRY V. CITY	\$4,712.00	\$4,712.00	\$0.00
Matter Description (First Line): HEALTH DEPARTMENT INVESTIGATION	\$8,186.14	\$8,175.00	\$11.14
Matter Description (First Line): HEALTH INSURANCE COVERAGE	\$4,325.00	\$4,325.00	\$0.00
Matter Description (First Line): HOWARD, ET AL. V. CITY	\$36,602.34	\$36,238.75	\$363.59
Matter Description (First Line): HUETHER V. BOARD OF HEALTH	\$1,385.25	\$1,378.00	\$7.25
Matter Description (First Line): INSPECTORS/MALERB A/ARBITRATION	\$644.00	\$644.00	\$0.00

KP LAW, P.C.

Billed

TOTAL BILLED		BILLED	
ClientSort	Fees/Disb.	Fees	Disb.
Matter Description (First Line): JEAN MICHEL BYPASS APPEAL	\$1,600.00	\$1,600.00	\$0.00
Matter Description (First Line): JOHN DOE V. MEDFORD PUBLIC SCHOOLS	\$6,474.67	\$4,702.50	\$1,772.17
Matter Description (First Line): JUFFRE V. NATIONAL GRID	\$4,766.00	\$4,766.00	\$0.00
Matter Description (First Line): KODIS V. MEDFORD PS	\$3,835.00	\$3,835.00	\$0.00
Matter Description (First Line): LIBRARY NEGOTIATIONS	\$8,953.24	\$8,906.00	\$47.24
Matter Description (First Line): LINEHAN V. CITY OF MEDFORD	\$6,506.88	\$6,370.00	\$136.88
Matter Description (First Line): LOCAL 25 - CLERICAL	\$7,037.00	\$7,037.00	\$0.00
Matter Description (First Line): LOCAL 25 - DEPARTMENT HEADS	\$29,895.80	\$29,778.00	\$117.80
Matter Description (First Line): LOCAL 25 - DPW	\$72,261.14	\$70,268.50	\$1,992.64
Matter Description (First Line): LOCAL 25 - PARKING DEPARTMENT	\$16,273.69	\$16,217.00	\$56.69
Matter Description (First Line): LOCAL 25 - SUPERINTENDENTS AND INSPECTORS	\$14,540.00	\$14,499.00	\$41.00
Matter Description (First Line): LOCAL 25 (BUILDING INSPECTORS)/DLR/ULP/LOCATION-TRACKING TABLETS	\$1,670.00	\$1,670.00	\$0.00
Matter Description (First Line): LOCAL 25 (DPW)/DLR/ULP/DRUG TEST	\$8,558.00	\$8,558.00	\$0.00
Matter Description (First Line): LOCAL 25 DEPT. HEADS/ULP/FORMER IT DIRECTOR	\$18,009.73	\$18,002.00	\$7.73

KP LAW, P.C.

Billed

TOTAL BILLED		BILLED	
ClientSort	Fees/Disb.	Fees	Disb.
Matter Description (First Line): LOCAL 25 DPW/AAA/FOREMAN SENIORITY GRIEVANCE 27507	\$7,050.00	\$7,050.00	\$0.00
Matter Description (First Line): LOCAL 25 DPW/AAA/MCKENNA TERMINATION	\$20,572.00	\$20,572.00	\$0.00
Matter Description (First Line): LOCAL 25 DPW/KERGER MEO III PROMOTION GRIEVANCE	\$9,190.00	\$9,190.00	\$0.00
Matter Description (First Line): LOCAL 25 DPW/ULP/NESTOR WARNINGS	\$338.00	\$338.00	\$0.00
Matter Description (First Line): LOCAL 25 DPW/ULP/SNOW PLOW INVESTIGATION	\$52.00	\$52.00	\$0.00
Matter Description (First Line): LOCAL 25/ARBITRATION/DINNER BREAK	\$2,492.00	\$2,492.00	\$0.00
Matter Description (First Line): LOCAL 25/ULP/PROBATIONARY PERIOD	\$783.00	\$783.00	\$0.00
Matter Description (First Line): LOCAL 25/ULP/TIME RECORDING POLICY	\$594.00	\$594.00	\$0.00
Matter Description (First Line): LODATO V. CITY OF MEDFORD	\$1,680.00	\$1,680.00	\$0.00
Matter Description (First Line): M. DISTASIO EXCAVATION CONTRACTORS BID PROTEST	\$1,148.00	\$1,148.00	\$0.00
Matter Description (First Line): MAIN STREET (RT. 38) MASSDOT PROJECT	\$4,088.00	\$4,088.00	\$0.00
Matter Description (First Line): MANGIASI APPEAL- MEDFORD POLICE	\$6,552.00	\$6,552.00	\$0.00

KP LAW, P.C.

Billed

TOTAL BILLED		BILLED	
ClientSort	Fees/Disb.	Fees	Disb.
Matter Description (First Line): MARIJUANA HOST COMMUNITY AGREEMENTS	\$3,484.50	\$3,484.50	\$0.00
Matter Description (First Line): MAYOR V. MIAA	\$1,282.50	\$1,282.50	\$0.00
Matter Description (First Line): MCCORMACK AVENUE SALE	\$1,809.00	\$1,809.00	\$0.00
Matter Description (First Line): MCDONALD V. CHIEF OF POLICE	\$305.00	\$305.00	\$0.00
Matter Description (First Line): MEDFORD FIREFIGHTERS LOCAL 1032	\$168,969.76	\$168,197.50	\$772.26
Matter Description (First Line): MEDFORD POLICE CHIEF V. TASLIMI	\$2,410.69	\$2,375.00	\$35.69
Matter Description (First Line): MEDFORD POLICE PATROLMEN'S ASSOCIATION	\$1,160.00	\$1,160.00	\$0.00
Matter Description (First Line): MEDFORD SCHOOL INVESTIGATION	\$19,432.32	\$19,253.00	\$179.32
Matter Description (First Line): MEDFORD SQUARE DEVELOPMENT	\$42,439.00	\$42,439.00	\$0.00
Matter Description (First Line): MEDFORD v. KATERINA BELL	\$2,604.00	\$2,604.00	\$0.00
Matter Description (First Line): MEDFORD v. TED MARTINEZ	\$4,424.00	\$4,424.00	\$0.00
Matter Description (First Line): MEDFORD ZBA AND DIV FELLSWAY, LLC (970 FELLSWAY, LLC)	\$30,862.25	\$28,800.00	\$2,062.25
Matter Description (First Line): MICHAEL DUPONT ET AL V. CITY OF MEDFORD, ET AL.	\$22,293.52	\$20,589.00	\$1,704.52

KP LAW, P.C.

Billed

TOTAL BILLED		BILLED	
ClientSort	Fees/Disb.	Fees	Disb.
Matter Description (First Line): MILANO V. CITY	\$1,680.00	\$1,680.00	\$0.00
Matter Description (First Line): MPPA/ARBITRATION/ RICCIARDI/IOD	\$27.00	\$27.00	\$0.00
Matter Description (First Line): MYSTIC GREEN CONDO UNIT 21	\$292.50	\$292.50	\$0.00
Matter Description (First Line): MYSTIC, LLC COMPREHENSIVE PERMIT	\$54,052.18	\$51,907.50	\$2,144.68
Matter Description (First Line): NATIONAL GRID V. CITY OF MEDFORD, ET AL.	\$6,919.04	\$6,899.00	\$20.04
Matter Description (First Line): NEW YORK CAPITAL INVESTMENT V. MEDFORD COMMUNITY DEVELOPMENT BOARD	\$49,935.39	\$47,082.00	\$2,853.39
Matter Description (First Line): OPEN MEETING LAW (R)	\$7,543.20	\$7,508.19	\$35.01
Matter Description (First Line): PARKING DEPARTMENT INVESTIGATION	\$6,864.00	\$6,864.00	\$0.00
Matter Description (First Line): PARKWAY PLAZA CONDOMINIUM V. TARANTI ET AL	\$130.00	\$130.00	\$0.00
Matter Description (First Line): PAYROLL	\$24,832.67	\$24,773.00	\$59.67
Matter Description (First Line): PEC NEGOTIATIONS	\$7,943.02	\$7,934.50	\$8.52
Matter Description (First Line): PEC/ARBITRATION/OP T-OUT PAYMENT	\$24,730.22	\$24,700.00	\$30.22
Matter Description (First Line): PIERRE V. MEDFORD - POLICE DEPT	\$1,450.00	\$1,450.00	\$0.00

KP LAW, P.C.

Billed

TOTAL BILLED		BILLED	
ClientSort	Fees/Disb.	Fees	Disb.
Matter Description (First Line): PLYMOUTH ROCK A/S/O MIKE'S LANDSCAPING V. CITY	\$3,236.00	\$3,236.00	\$0.00
Matter Description (First Line): POLICE PATROL NEGOTIATIONS	\$54,848.20	\$54,713.00	\$135.20
Matter Description (First Line): POLICE STATION PROJECT	\$1,030.00	\$1,030.00	\$0.00
Matter Description (First Line): PRONJA V. MEDFORD - DPW	\$1,042.00	\$1,042.00	\$0.00
Matter Description (First Line): PUBLIC RECORDS (R)	\$19,025.56	\$18,908.94	\$116.62
Matter Description (First Line): PUOPOLO V. CITY	\$1,738.00	\$1,738.00	\$0.00
Matter Description (First Line): RANDAZZO V. CHIEF OF POLICE	\$2,884.00	\$2,884.00	\$0.00
Matter Description (First Line): REAL ESTATE (R)	\$14,914.82	\$14,412.63	\$502.19
Matter Description (First Line): REFAH V. ZBA	\$33,345.52	\$33,182.00	\$163.52
Matter Description (First Line): SARRO V. CITY	\$3,628.00	\$3,628.00	\$0.00
Matter Description (First Line): SEELEY V. POLICE CHIEF	\$4,747.50	\$4,747.50	\$0.00
Matter Description (First Line): SHAIKH V. CITY	\$4,228.87	\$4,200.00	\$28.87
Matter Description (First Line): SMALL CELL WIRELESS	\$17,496.67	\$17,460.00	\$36.67
Matter Description (First Line): SWEENEY V. CITY	\$7,098.00	\$7,098.00	\$0.00
Matter Description (First Line): TASSINARI V. CITY	\$16,823.65	\$16,713.00	\$110.65
Matter Description (First Line): TEAMSTERS DEPARTMENT HEAD CERT.	\$3,546.50	\$3,530.00	\$16.50

KP LAW, P.C.

Billed

TOTAL BILLED		BILLED	
ClientSort	Fees/Disb.	Fees	Disb.
Matter Description (First Line): TEAMSTERS LOCAL 25 V. CITY OF MEDFORD (CONSOLIDATED CASES)	\$83,591.47	\$82,822.50	\$768.97
Matter Description (First Line): THEORY WELLNESS HCA	\$7,245.00	\$7,245.00	\$0.00
Matter Description (First Line): USAA V. CITY	\$1,456.00	\$1,456.00	\$0.00
Matter Description (First Line): VERMONT MUTUAL V. CITY	\$1,728.72	\$1,709.00	\$19.72
Matter Description (First Line): WEBBER V. MEDFORD - DPW/TREE ISSUE	\$400.00	\$400.00	\$0.00
Matter Description (First Line): WILLIAM F. O'BRIEN V. CITY OF MEDFORD	\$3,753.92	\$3,724.00	\$29.92
Matter Description (First Line): WOLK V. RISE TOGETHER, LLC (ZBA)	\$16,938.00	\$16,938.00	\$0.00
Matter Description (First Line): ZONING BOARD OF APPEALS (R)	\$20,934.85	\$20,844.74	\$90.11
Medford	\$2,394,234.11	\$2,334,731.25	\$59,502.86
Grand Totals:	\$2,394,234.11	\$2,334,731.25	\$59,502.86

September 14, 2026

Via Email Only (mnazarian@medford-ma.gov)

Nina Nazarian
Chief of Staff – Office of Mayor Breanna Lungo-Koehn
City of Medford

Ms. Nazarian:

Pursuant to your request, please find a summary of all legal work billed by our office since May 2026 below:

Matter	Hours	Total
Onboarding and review of open matters	13.5	\$3,712.50
CBA Negotiations and Policy Review	14.5	\$3,987.50
FF [REDACTED] 111F	4.75	\$1,306.25
Cpt [REDACTED] Arbitration Award (AAA 8624)	0.5	\$137.50
OT/Detail Arbitration (AAA 0076)	1.5	\$412.50
FF [REDACTED] 111F Arbitration (AAA 4159)	0.25	\$68.75
Flat Fee (Monthly)	2 mo.	\$1,100.00

If you have any questions regarding the foregoing or would like our firm to periodically provide status updates in this manner pertaining to the total legal costs by matter, please let me know.

Sincerely,

/s/Richard Massina
Richard Massina, Esq.
rich@cliffordkennylaw.com

Thru 09/08/2026

	<u>Date</u>	<u>Ref #</u>	<u>Stmt #</u>	<u>Fee Amount</u>	<u>Hours</u>	<u>Expense Amount</u>	<u>Advance Amount</u>	<u>Payment Amount</u>	<u>Apply to Stmt #</u>	<u>Bill Total</u>	<u>Balance Due</u>
770.0006M AXA XL											
RE: * [REDACTED] et al. vs. City of Medford, et al.											
	Subtotal			48,709.50	231.90		1,442.50	45,346.00		50,152.00	4,806.00

GRAND TOTALS											
	<u>Date</u>	<u>Ref #</u>	<u>Stmt #</u>	<u>Fee Amount</u>	<u>Hours</u>	<u>Expense Amount</u>	<u>Advance Amount</u>	<u>Payment Amount</u>	<u>Apply to Stmt #</u>	<u>Bill Total</u>	<u>Balance Due</u>
				48,709.50	231.90		1,442.50	45,346.00		50,152.00	4,806.00

O'Hagan Meyer LLC

Budgets - Fees and Expenses by Code from: 1/1/2020 through 9/9/2026

1748-54529 [REDACTED] v City of Medford

Task Code	Unbilled	Billed	Total
Fees by Task Code			
L100	\$5,028.00	\$0.00	\$5,028.00
L200	\$55.00	\$0.00	\$55.00
Total Fees by Task Code	\$5,083.00	\$0.00	\$5,083.00
Total	\$5,083.00	\$0.00	\$5,083.00

O'Hagan Meyer LLC

Budgets - Fees and Expenses by Code from: 1/1/2020 through 9/9/2026

1748-54206 [REDACTED] v. Medford Public

Task Code	Unbilled	Billed	Total
Fees by Task Code			
L100	\$1,127.50	\$3,025.00	\$4,152.50
L200	\$0.00	\$55.00	\$55.00
L400	\$27.50	\$0.00	\$27.50
Total Fees by Task Code	\$1,155.00	\$3,080.00	\$4,235.00
Total	\$1,155.00	\$3,080.00	\$4,235.00

O'Hagan Meyer LLC

Budgets - Fees and Expenses by Code from: 1/1/2020 through 9/9/2026

1748-53954 [REDACTED] v. City of Medford

Task Code	Unbilled	Billed	Total
Fees by Task Code			
L100	\$1,045.00	\$797.50	\$1,842.50
L200	\$903.00	\$3,767.50	\$4,670.50
L300	\$27.50	\$0.00	\$27.50
L400	\$110.00	\$1,375.00	\$1,485.00
Total Fees by Task Code	\$2,085.50	\$5,940.00	\$8,025.50
Total	\$2,085.50	\$5,940.00	\$8,025.50

O'Hagan Meyer LLC

Budgets - Fees and Expenses by Code from: 1/1/2020 through 9/9/2026

1748-53546 [REDACTED] cv. City of Medford

Task Code	Unbilled	Billed	Total
Fees by Task Code			
L100	\$5,419.00	\$0.00	\$5,419.00
L200	\$82.50	\$0.00	\$82.50
Total Fees by Task Code	\$5,501.50	\$0.00	\$5,501.50
Total	\$5,501.50	\$0.00	\$5,501.50

O'Hagan Meyer LLC

Budgets - Fees and Expenses by Code from: 1/1/2020 through 9/9/2026

1748-51118 [REDACTED] v. City of Medford

Task Code	Unbilled	Billed	Total
Fees by Task Code			
L100	\$302.50	\$9,267.50	\$9,570.00
L200	\$0.00	\$550.00	\$550.00
Total Fees by Task Code	\$302.50	\$9,817.50	\$10,120.00
Total	\$302.50	\$9,817.50	\$10,120.00

O'Hagan Meyer LLC

Budgets - Fees and Expenses by Code from: 1/1/2020 through 9/9/2026

1748-44421 [REDACTED] v. City of Medford

Task Code	Unbilled	Billed	Total
Fees by Task Code			
L100	\$0.00	\$13,805.00	\$13,805.00
L200	\$0.00	\$1,100.00	\$1,100.00
Total Fees by Task Code	\$0.00	\$14,905.00	\$14,905.00
Total	\$0.00	\$14,905.00	\$14,905.00

Peabody & Arnold
Billed/Paid Amounts
FY20-FY26

<u>Matter Name</u>	<u>Billed</u>	<u>Receipts</u>
207396- [REDACTED] [REDACTED] v. City of Medford. 0006856050	\$64,720.75	\$64,653.50
207661 - [REDACTED] [REDACTED] v. City of Medford	\$86,507.35	\$84,633.60
207889 - [REDACTED] v. Medford Vocational Technical High School	\$14,463.00	\$14,463.00
208359 - [REDACTED] v. City of Medford	\$24,703.50	\$24,703.50
208497 - [REDACTED] [REDACTED] v. Medford Public Schools	\$5,144.50	\$5,144.50
208531 - [REDACTED] v. Medford Public Schools	\$16,023.50	\$16,023.50
208553 - [REDACTED] v. Medford Public Schools	\$10,608.50	\$10,608.50
208661 - [REDACTED] v. City of Medford	\$17,636.50	\$17,636.50
208746 - [REDACTED] v. City of Medford	\$9,535.23	\$9,535.23
209290 - [REDACTED] v. Medford Public Schools	\$8,907.00	\$8,907.00
210087 - City of Medford - General Advice	\$2,455.00	\$1,668.00

Peabody & Arnold
Billed/Paid Amounts
Prior to FY20

<u>Matter Name</u>	<u>Billed</u>	<u>Receipts</u>
202533 - [REDACTED] v. Medford Public Schools, Claim No: 3990206	\$9,583.50	\$9,583.50
205637 - [REDACTED] v. City of Medford	\$18,886.00	\$18,886.00
69666 - [REDACTED] v. City of Medford	\$15,196.87	\$15,196.87
75715 - [REDACTED] v. City of Medford	\$8,036.65	\$6,314.15
84815 - [REDACTED] v. City of Medford	\$14,875.15	\$14,875.15
85367 - [REDACTED] v. City of Medford Public	\$19,513.48	\$19,513.48
87746 - [REDACTED] v. City of Medford	\$22,527.29	\$22,527.29
87932 - [REDACTED] [REDACTED] v. City of Medford	\$42,327.90	\$42,327.90
90831 - [REDACTED] v. The City of Medford	\$9,289.35	\$9,289.35
91704 - [REDACTED] [REDACTED] v. City of Medford	\$11,812.70	\$11,812.70
91969 - [REDACTED] [REDACTED] [REDACTED] v. Paul F. Mochi, individual	\$56,460.97	\$56,460.97

92274 - [REDACTED] v. City of Medford	\$23,917.99	\$23,917.99
92382 - [REDACTED] [REDACTED] v. Medford Public	\$3,769.20	\$3,769.20
97256 - [REDACTED] [REDACTED] v. City of Medford	\$7,274.10	\$7,274.10
200897 - [REDACTED] v. City of Medford	\$117,948.77	\$114,508.02
201250 - [REDACTED] [REDACTED] v. City of Medford	\$31,712.75	\$28,847.50
202792 - [REDACTED] [REDACTED] v. City of Medford	\$2,695.00	\$2,695.00
203065 - [REDACTED] v. City of Medford - Medford	\$115,326.00	\$115,302.50

Matter Number	Matter Name	Fees Billed	Costs Billed	Total Billed
121311-000003	[REDACTED]*	\$170,858.50	\$25,249.88	\$196,108.38
121311-000004	[REDACTED]*	\$82,618.50	\$11,388.43	\$94,006.93
121311-000005	[REDACTED] et al.**	\$282,863.00	\$55,441.25	\$338,304.25
	Totals	\$536,340.00	\$92,079.56	\$628,419.56

These are the total bills from August 29, 2024 to present.

High level summary of notable information:

1. We estimate demands for these cases were close to **\$2 million**. Moreover, had the City originally settled these matters, which we believe were mostly frivolous claims, **we believe doing so would have led to additional litigation, with demands totaling millions more.**
2. Because we went through the litigation process and completed "discovery", the City was able to use the information and evidence obtained to negotiate the \$250k demand in the Conboy matter down to \$19k. Similarly, in the Fargo et al. matter, where the demand was estimated to be as high as \$1.5 million, we were able to negotiate the matter down to \$28k.
3. We were aware that individuals were actively encouraging employees to file similar lawsuits, making it even more important for the City to vigorously defend these cases with the most experienced attorneys in the field.
4. We negotiated the attorney's fees from \$900-\$1,000 per hour to \$660 per hour.
5. We confirmed that if Seyfarth Shaw, LLP had two or more attorney's present, the City would only be charged for one attorney at the hourly rate.
6. After these lawsuits were filed, the City implemented timesheets to better track employees' hours and address the issues raised by these claims. For example, each of the claims described above included an allegation that the individual did not take a one-hour lunch break each day for three years and sought triple damages for the alleged violations.

*One plaintiff

**Eight plaintiffs, however settlement was ultimately with 7 plaintiffs

Nina Nazarian

From: Nina Nazarian
Sent: Sunday, September 13, 2026 8:52 AM
To: City Council Members
Cc: Breanna Lungo-Koehn
Subject: Response to Council 26-142B

Dear President Bears and City Councilors:

We are writing pursuant to item 6 in 26-142B, where the City Council requested a list and total estimated cost of all budgeted legal expenses for the FY27 city budget in department budgets other than the Law Department.

For the FY27 budget, legal expenses may be charged to the following budgets, including but not limited to:

- Department of Public Works - \$45,000
- Fire Department - \$95,000 (we are in contract negotiations where we are not in other units)
- Law Department - \$156,000 for retainer
- Medford Community Media - \$10,000
- Police Department - \$40,000
- Planning, Development and Sustainability - \$50,000

As for the estimated amounts, well that part is difficult to answer since legal costs are not particularly predictable. For example, we do not know how many grievances we are going to have in any given year, how arduous cable negotiations may be, nor do we know how many appeals will be filed against the Zoning Board, etc. That said, we are providing a number for each, to the best of our ability, but the amounts could differ vastly from the above.

Sincerely,

Nina

--

Nina Nazarian
Chief of Staff | Office of Mayor Breanna Lungo-Koehn
City of Medford
85 George P. Hassett Drive, Medford, MA 02155
781-393-2408
nnazarian@medford-ma.gov
she/her/hers

Please note: The Commonwealth of Massachusetts considers most electronic communications to and from public employees to be public records and disclosable under the Massachusetts Public Records Law and its regulations. *Please consider the environment before printing this email.*



Medford City Council
Medford, Massachusetts

MEETING DATE

September 29, 2026

SPONSORED BY

Isaac Bears, Council President,
George Scarpelli, City Councilor

AGENDA ITEM

26-162 - Resolution to Support Workers on Strike at Encore

FULL TEXT AND DESCRIPTION

Whereas, Encore Casino and Resort Workers are ambassadors for the Greater Boston area's travelers and tourists; and

Whereas, the over 1400 members of UNITE HERE Local 26 and Teamsters Local 25 who do the work at the casino reflect the strength and diversity of the City of Medford and our region; and

Whereas, UNITE HERE Local 26 and Teamsters Local 25 workers believe one job should be enough to live in the city they work in, raise a family and retire with dignity; and

Whereas, after months of negotiations, UNITE HERE Local 26 and Teamsters Local 25 have gone on strike indefinitely at the Encore Boston Harbor; now, therefore:

Be it Resolved by the Medford City Council that we go on record expressing support for the Strike of UNITE HERE Local 26 and Teamsters Local 25 workers, honor the strike by not eating, meeting, or sleeping at Encore Casino while a labor dispute is in effect, and to join all picket lines and encourage all city employees to do the same.

Be it Further Resolved that the City Clerk be and hereby is requested to forward a suitably engrossed copy of this resolution to the General Manager of Encore Boston Harbor.

RECOMMENDATION

FISCAL IMPACT

ATTACHMENTS

None



Medford City Council
Medford, Massachusetts

MEETING DATE

September 29, 2026

SPONSORED BY

Liz Mullane, City Councilor, Justin
Tseng, City Councilor

AGENDA ITEM

26-170 - Resolution to Object to the Mayor's Politically Motivated Refusal to Advertise Council Neighborhood Ward Meetings

FULL TEXT AND DESCRIPTION

WHEREAS, the Medford City Council has launched public Neighborhood Meetings in every ward as official Council events to bring City Hall directly to the people, with an open agenda so residents, not elected officials, can drive the conversation; and

WHEREAS, after the Council asked the City Administration to help publicize these meetings and was informed that the City lacked the staffing and resources to assist, residents across the political spectrum volunteered their own time to spread the word, create materials, offer childcare, and encourage their neighbors to participate; and

WHEREAS, before the first Neighborhood Meeting had even taken place, the Mayor relied on unsupported claims about outside political involvement to refuse City publicity for these official Council meetings, suggest potential ethical impropriety by Councilors, and subsequently remove the meeting listings from the City website; and

WHEREAS, the first Neighborhood Meeting in Ward I demonstrated exactly why these forums matter, with residents engaging in a cordial and substantive discussion about pedestrian safety, noise, public services, and concrete improvements they want to see in their neighborhoods; now, therefore:

BE IT RESOLVED by the Medford City Council that we affirm that our Neighborhood Meetings are official, nonpartisan public meetings open to every resident and call upon the Mayor to immediately restore all Neighborhood Meeting listings to the City website and calendar; and

BE IT FURTHER RESOLVED that the City Council rejects the use of unfounded allegations, insinuations of ethical impropriety, or inaccurate information as a basis for withholding ordinary City communications support from lawful public meetings intended to foster dialogue and improve City services, and affirms that taxpayer-funded communications channels should not be used in a manner

that creates barriers between residents and their elected representatives or undermines transparency in City government; and

BE IT FURTHER RESOLVED that the City Council will continue bringing government directly into Medford’s neighborhoods and invites the Mayor, City staff, and department heads to attend the remaining Neighborhood Meetings, answer residents’ questions, and hear firsthand what the people of Medford have to say.

RECOMMENDATION

FISCAL IMPACT

ATTACHMENTS

None



Medford City Council
Medford, Massachusetts

MEETING DATE

September 29, 2026

SPONSORED BY

George Scarpelli, City Councilor

AGENDA ITEM

26-172 - Order to Place Adoption of M.G.L. Chapter 40, Section 6C Before Voters in November 2027 (Regarding Liability on Private Ways)

FULL TEXT AND DESCRIPTION

Whereas, in *Gallagher v. City of Medford*, a resident brought suit against the City after suffering injuries caused by a defect on a private way; and,

Whereas, the City sought summary judgment, arguing it had no maintenance obligation over private ways; and,

Whereas, the Appellate Division of the District Court Department found that the City's informal maintenance on that private way — performed without the City having adopted M.G.L. c. 40 §6C — estopped the City from denying that way's public status under G.L. c. 84, §25; and,

Whereas, the Court stated directly: "It is undeniable that a city or town which has accepted G.L. c.40 §6C may remove snow and ice from a private way without risk that such services will constitute repairs cognizable under G.L. c.84, §25;" and,

Whereas, following the *Gallagher* ruling, the City has not acted to adopt G.L. c. 40 §6C; and

Whereas, the City of Medford continues to perform informal maintenance, sweeping, and snow and ice removal on all private ways; and

Whereas, Section 6C's liability carve-out only protects the City if the City has actually accepted it; and

Whereas, 39% of Medford roadways are designated private ways; and

Whereas, since 2020, the City has appropriated \$0.00 for private way repairs; and

Whereas, no maintenance or upkeep services are provided but for the informal services outlined in *Gallagher*; and

Whereas, without acceptance, the City is unnecessarily exposing itself to full public-way tort liability;
and

Whereas, acceptance of the measure requires a ballot question at the next regular City election; now,
therefore:

By the Medford City Council that we hereby vote, pursuant to Massachusetts General Laws Chapter 40, Section 6D, to submit for acceptance to the registered voters of the City, at the next regular City election, the question of whether the City shall accept the provisions of Massachusetts General Laws Chapter 40, Section 6C.

RECOMMENDATION

FISCAL IMPACT

ATTACHMENTS

None



**MEDFORD, MASSACHUSETTS
MAYOR BREANNA LUNGO-KOEHN**

July 9, 2026

Via Electronic Delivery

To the Honorable President and
Members of the Medford City Council
Medford City Hall
85 George P. Hassett Drive
Medford, MA 02155

Re: Capital and General Stabilization Fund Appropriation Requests

Dear President Bears and City Councilors:

I respectfully request and recommend that your Honorable Body approve appropriations from the:

1. Capital Stabilization Fund in the amount of Five Hundred Seventy-One Thousand Five Hundred Fifty Dollars and Zero Cents (\$571,550.00) on the following items:
 - a. Roberts Hot Water Tank Replacement for \$250,000;
 - b. Interactive Panels for Classrooms for \$180,000;
 - c. Address Facilities Conditions Assessment Projects at Schools for \$75,000;
 - d. Defibrillator Replacements at Schools for \$25,000;
 - e. Conceptual Building Study and Construction Cost Estimate for Oak Grove Building for \$24,550; and
 - f. Admins Server Replacement for \$17,000.

Given the appropriations made on June 23, 2026, the balance of the Capital Stabilization Fund before this vote is \$13,000,000.

2. General Stabilization Fund in the amount of Thirty-Five Thousand Dollars and Zero Cents (\$35,000.00) for an executive search and recruitment company to hire a new police chief.

The balance of the General Stabilization Fund before this vote is \$6,000,000. As the Council knows, Free Cash is not available this time of year, and where this is not a capital item, the only remaining source that would be acceptable would be General Stabilization Fund. Small amounts out of this fund will not impact the City's bond rating.

A School Department representative will be in attendance for items 1.a through d, DPW Commissioner Tim McGivern will be in attendance for item 1.e, IT Director Richard Lane will

**85 George P. Hassett Drive, Medford, MA 02155
781-396-5500 * www.medfordma.org**



MEDFORD, MASSACHUSETTS
MAYOR BREANNA LUNGO-KOEHN

be in attendance for item 1.f and Human Resources Director Lisa Crowley and Police Chief Jack Buckley will be in attendance for item 2.

Thank you for your kind attention to these matters.

Respectfully submitted,


Breanna Lungo-Koehn
Mayor



**MEDFORD, MASSACHUSETTS
MAYOR BREANNA LUNGO-KOEHN**

July 30, 2026

Via Electronic Delivery

To the Honorable President and
Members of the Medford City Council
Medford City Hall
85 George P. Hassett Drive
Medford, MA 02155

Re: Supplemental Appropriation for the Fiscal Year 2027

Dear President Bears and Members of the City Council:

I respectfully request and recommend that your Honorable Body approves the following supplemental appropriation for Fiscal Year 2027, to restore the Law Department budget, which was originally proposed in a June 4, 2026 submission to the City Council.

	Mayor Proposed 6/4/26	City Council Cut on 6/23/26
Salaries	\$230,866.60	\$182,576.33
Ordinary	\$298,700.00	\$242,500.00
Total	\$529,566.60	\$425,076.33

And to meet this appropriation, the sum of Four Hundred Twenty-Five Thousand Seventy-Six Dollars and Thirty-Three Cents (\$425,076.33) be raised and appropriated from the Fiscal Year 2026 tax levy.

Over the past several weeks, we have made a thoughtful effort to engage with the Council on this appropriation as well as the provisions of legal documents responsive to your records requests. On May 13th, we responded to the Council's public records request, noting that Item (a) alone, of the nine requested items, would take an estimated 395 hours to review just email records.

On June 16th, we supplied the Council with 130 pages of City-side settlements and School-side settlements between 2020 and the Council's request.

On June 23rd, we provided the spending detail in the Fire Department Professional Services line as well as an outline of other legal expenditures incurred by the City in Fiscal Year 2026 budget. You may recall, I wrote to the full Council on June 3rd offering to discuss the most effective process for providing those materials. My Chief of Staff also requested at both the June 9th and June 23rd Council meetings that the Council designate a member to work with our office on this matter. We unfortunately have yet to receive a response.



**MEDFORD, MASSACHUSETTS
MAYOR BREANNA LUNGO-KOEHN**

Most recently, on July 23rd, we supplied an updated breakdown of Medford's FY26 budget legal spending compared to other communities and on the same date, I emailed the Council President asking how we can reach an understanding so that my office could begin working a grant agreement to help fund Medford Family Network, begin the recruitment process for a new arts liaison position, and other budget priorities. I have not heard back on this request as of yet.

My administration has consistently sought to engage with the Council in a collaborative and transparent manner, and we remain committed to doing so. However, our repeated requests for coordination and communication with the Council have thus far gone unanswered. It is important that we receive direction and feedback from the Council collectively, or at least from a majority of its members, so that we can be confident we are proceeding in accordance with the Council's expectations and are not expending City staff time and resources pursuing work that may ultimately prove unnecessary or incomplete.

Thank you for your kind attention to this matter.

Sincerely,


Breanna Lungo-Koehn
Mayor

26-142 - Supplemental Appropriation for the Fiscal Year 2027



July 30, 2026
Via Electronic Delivery
To the Honorable President and
Members of the Medford City Council
Medford City Hall
85 George P. Hassett Drive
Medford, MA 02155

Re: Supplemental Appropriation for the Fiscal Year 2027

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Thank you for your kind attention to this matter.

Sincerely,


Breanna Lungo-KoeHN
Mayor

Councilor Tseng motioned to Amend the Appropriation paper to cut 382,586.70 from the Appropriation and approve 42,507.63 one-month funding (seconded by Councilor Scarpelli) – Approved on a Roll call vote of Seven in favor, Zero opposed

26-142B - Council Response to Paper 26-142

Offered by President Bears
Motion to Approve: Councilor Tseng
Approved Unanimously

Whereas, the Medford City Council unanimously approved Resolution 26-043 on February 24, 2026 requesting a comprehensive litigation report from the City Administration regarding the significant increase in legal claims against the City of Medford since January



**MEDFORD, MASSACHUSETTS
MAYOR BREANNA LUNGO-KOEHN**

September 24, 2026

Via Electronic Delivery

To the Honorable President and
Members of the Medford City Council
Medford City Hall
Medford, MA 02155

Re: Food Truck Permit

Dear President Bears and Members of the City Council:

On behalf of the below entity, I respectfully submit to the Medford City Council the following request for a "food truck" permit in the City of Medford. In addition to City Council approval, vendors are required to adhere to Health Department food safety requirements.

Business Name: Trolley Dogs
26 Claudette Circle
Framingham, MA

Date + Time: 10/4/2026
11:00 AM – 3:00 PM

Location: Brooks Elementary School
Medford, MA 02155

Event: Fall Fest

About the Event: Fall festival with games, rides, arts and crafts.

Thank you for your kind attention to this matter.

Sincerely,

Breanna Lungo-Koehn, Mayor



**MEDFORD, MASSACHUSETTS
MAYOR BREANNA LUNGO-KOEHN**

September 24, 2026

Via Electronic Delivery

To the Honorable President and
Members of the Medford City Council
Medford City Hall
Medford, MA 02155

Re: Capital & General Stabilization Fund Appropriation Requests

Dear President Bears and Members of the City Council:

I respectfully request and recommend that your Honorable Body approves the following appropriations from the:

1. Capital Stabilization Fund in the amounts of:

One Million Three Hundred Thousand Dollars and Zero Cents (\$1,300,000.00) for road resurfacing work on the following streets, including but not limited to, Alfred Street, Almont Street, Billings Avenue, Brooks Park, Burget Avenue, Cedar Cliff Terrace, Crescent Street, Fern Road*, Fountain Street, Hamlin Avenue, Lookout Road, Madison Street, Maple Avenue, Maynard Street, Mitchell Avenue, Osborne Road, Pilgrim Road, Second Street*, Sherman Place, Valley Road, Vine Street, and Walter Street. Please see attached map of these streets.

**partial road segment, not entire length of road.*

- a. One Million Dollars and Zero Cents (\$1,000,000.00) for the replacement of the turf at Hormel Stadium.

The Capital Stabilization Fund currently has a balance of \$12,428,450.

2. General Stabilization Fund in the amount of Forty Thousand Dollars and Zero Cents (\$40,000.00) to fund the Medford Connects program. Attached is a document that outlines information and history on the Medford Connects program.

As of the writing of this paper, the balance of the General Stabilization Fund before this vote is \$6,000,000. (A request to appropriate \$35,000.00 for an executive search and recruitment company to hire a new police chief is still pending.)

City Engineer Owen Wartella will be available for request 1a, Recreation Director Kevin Bailey for request 1b, and Health and Human Services Director MaryAnn O'Connor & Assistant HHS Director Catherine Dhingra for questions on request 2.

Thank you for your kind attention to these matters.

**85 George P. Hassett Drive, Medford, MA 02155
781-396-5500 * www.medfordma.org**



**MEDFORD, MASSACHUSETTS
MAYOR BREANNA LUNGO-KOEHN**

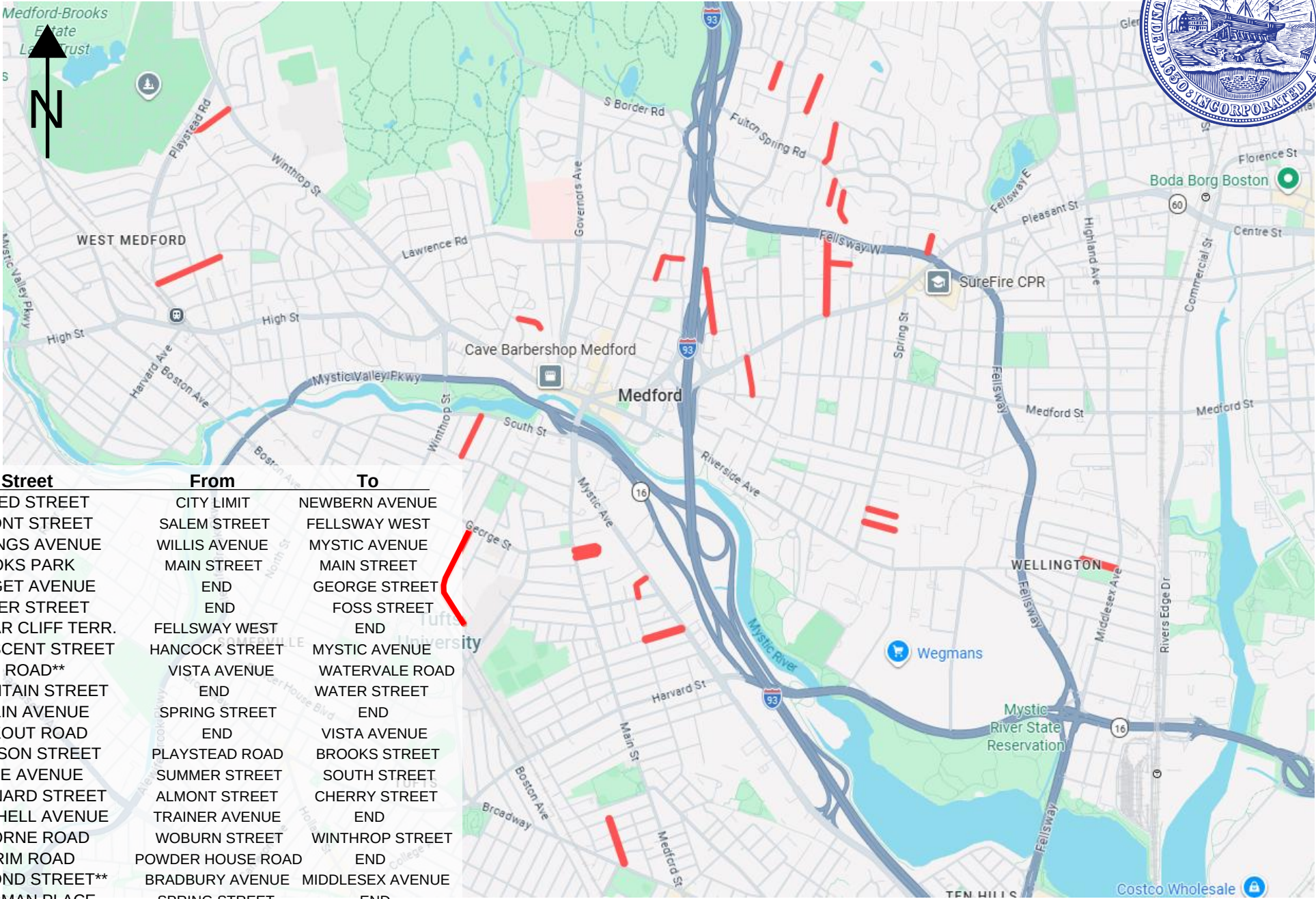
Respectfully submitted,


Breanna Lungo-Koehn
Mayor

Enclosures

ROADWAY - MILL & PAVE (2026-2027)

NOT TO SCALE



Street	From	To
ALFRED STREET	CITY LIMIT	NEWBERN AVENUE
ALMONT STREET	SALEM STREET	FELLSWAY WEST
BILLINGS AVENUE	WILLIS AVENUE	MYSTIC AVENUE
BROOKS PARK	MAIN STREET	MAIN STREET
BURGET AVENUE	END	GEORGE STREET
BUTLER STREET	END	FOSS STREET
CEDAR CLIFF TERR.	FELLSWAY WEST	END
CRESCENT STREET	HANCOCK STREET	MYSTIC AVENUE
FERN ROAD**	VISTA AVENUE	WATERVALE ROAD
FOUNTAIN STREET	END	WATER STREET
HAMLIN AVENUE	SPRING STREET	END
LOOKOUT ROAD	END	VISTA AVENUE
MADISON STREET	PLAYSTEAD ROAD	BROOKS STREET
MAPLE AVENUE	SUMMER STREET	SOUTH STREET
MAYNARD STREET	ALMONT STREET	CHERRY STREET
MITCHELL AVENUE	TRAINER AVENUE	END
OSBORNE ROAD	WOBURN STREET	WINTHROP STREET
PILGRIM ROAD	POWDER HOUSE ROAD	END
SECOND STREET**	BRADBURY AVENUE	MIDDLESEX AVENUE
SHERMAN PLACE	SPRING STREET	END
VALLEY ROAD	END	VISTA AVENUE
VINE STREET	FRANKLIN STREET	SALEM STREET
WALTER STREET	WOODROW AVENUE	CITY LIMIT

ROADWAY MILL & PAVE

MEDFORD CONNECTS: Sustaining a Trusted Community Connection to City Services & Resources

What is Medford Connects? Medford Connects is the City's community-based outreach and connection network, helping residents access information, services, and resources through trusted, culturally and linguistically responsive relationships. Community Liaisons and Connectors bring services directly into neighborhoods while connecting City departments, schools, nonprofits, and community partners to coordinate resources and respond to emerging needs. Supported by the MVP Program since 2021, including approximately \$375,000 in FY26, MVP funding helped build Medford Connects into a model for strengthening social resilience and addressing climate vulnerability. **MVP was not re-awarded in the current cycle**, as MVP shifted greater emphasis toward infrastructure and other climate investments.

What Does Medford Connects Do? The program combines Community Liaisons and Community Connectors to reach residents through trusted relationships and community-based outreach. ***Community Liaisons*** are trained Community Health Workers who provide culturally and linguistically responsive outreach, including assistance with MassHealth, SNAP, housing, and other services. They also provide interpretation, share City information, organize cultural events, and bring community concerns back to the City. ***Community Connectors*** bring lived experience, community relationships, and professional expertise in six areas: Immigrant Support & ESOL, Older Adults & Disabilities, Youth & Families, Financial Security, Food Systems, Climate Equity. Together, the team serves as a virtual front door to local resources through neighborhood outreach, resource hubs, language-specific WhatsApp groups, newsletters, community events, and partnerships.

Impact: In the last fiscal year, Medford Connects reached more than 7,000 residents through direct outreach, navigation, and community engagement. Staff provided 780+ MassHealth navigation sessions, delivered 1,040 food deliveries to low-income older adults, connected 230 children with back-to-school supplies, and provided 230+ residents with Winter Preparedness supplies. The program also engaged 150 teens through a job readiness summit and brought 1,000+ residents together through cultural and community events. Through the Food Security Task Force, ESOL Council, and cross-sector partnerships, Medford Connects also strengthens coordination among City departments, schools, nonprofits, and community organizations.

Current Funding Situation: When fully funded, Medford Connects supported a team of 12 Community Liaisons and Connectors working approximately 15 hours per week (\$280,000). Current BARR Foundation funding allows the City to maintain 8 staff members (5 Community Liaisons and 3 Connectors) at approximately 8 hours per week through June 30, 2027. However, demand for outreach and navigation continues to exceed current capacity. An additional **\$40,000** would allow our current 8 Community Liaisons and Connectors to increase from **8 hours to 12 hours per week**, restoring 32 hours of weekly staff capacity across the team. This additional capacity would expand resident outreach, navigation, language-specific engagement, community partnerships, and follow-up while helping meet the continued demand for services.

Looking Ahead: OPO is actively pursuing additional funding to sustain Medford Connects, including a recent Letter of Intent to the Cummings Foundation, continued discussions with the

BARR Foundation regarding future support, and applying for other funding opportunities as they arise.



City of Medford

Election Commission
85 George P. Hassett Drive, Room 102
Medford, Massachusetts 02155
781-393-2491

Call for Election
2026 GENERAL ELECTION
Tuesday, November 3, 2026

BE IT ORDERED: that the Elections Commission be and is hereby authorized and directed to notify and warn such of the inhabitants of the City of Medford, as were qualified by law to vote for candidates at our State General Election on Tuesday, November 3, 2026, to assemble at the polling places in their respective wards and precincts, then and there to give in their votes for:

SENATOR IN CONGRESS	For this Commonwealth
GOVERNOR	For this Commonwealth
LIEUTENANT GOVERNOR	For this Commonwealth
ATTORNEY GENERAL	For this Commonwealth
SECRETARY OF STATE	For this Commonwealth
TREASURER	For this Commonwealth
AUDITOR	For this Commonwealth
REPRESENTATIVE IN CONGRESS	5th Middlesex DISTRICT
COUNCILLOR	6th DISTRICT
SENATOR IN GENERAL COURT	2nd Middlesex DISTRICT
REPRESENTATIVE IN GENERAL COURT	23rd, 34th, 35th Middlesex
DISTRICT ATTORNEY	Northern DISTRICT
REGISTER OF PROBATE	Middlesex COUNTY
BALLOT QUESTIONS	1, 2, 3, 4, 5, 6, 7, 8, & 9

and the polls of the GENERAL ELECTION shall open at 7:00 A.M. and remain open until 8:00 P.M.

BE IT FURTHER ORDERED: that the following named polling places be, and they are hereby designated for use at the STATE GENERAL ELECTION on November 3, 2026.

(The said polling places to be open at 7:00 A.M. to 8:00 P.M.) Voting Precincts:

Ward 1 Precinct 1	Andrew Middle School, 3000 Mystic Vly. Pkwy.
Ward 1 Precinct 2	Fire Fighters' Club, 340 Salem Street
Ward 2 Precinct 1	Roberts Elementary School, Park St & Court St
Ward 2 Precinct 2	Roberts Elementary School, Park St & Court St
Ward 3 Precinct 1	Medford American Legion, 321 Winthrop Street



City of Medford

Election Commission
85 George P. Hassett Drive, Room 102
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Ward 3 Precinct 2	Temple Shalom, 475 Winthrop Street
Ward 4 Precinct 1	Tufts University, Gantcher Center Right Rear, 161 College Ave.
Ward 4 Precinct 2	Tufts University, Gantcher Center Right Rear, 161 College Ave.
Ward 5 Precinct 1	Missituk Elementary School, 37 Hicks Ave.
Ward 5 Precinct 2	Missituk Elementary School, 37 Hicks Ave.
Ward 6 Precinct 1	West Medford Fire Station, 26 Harvard Ave.
Ward 6 Precinct 2	Brooks School, 388 High Street
Ward 7 Precinct 1	Mystic Valley Towers, 3610 Mystic Vly Pkwy, Leasing Office
Ward 7 Precinct 2	McGlynn K-8 Public School, 3004 Mystic Valley Parkway
Ward 8 Precinct 1	Senior Center, 101 Riverside Avenue
Ward 8 Precinct 2	South Medford Fire Station, Zero Medford Street

In-person early voting for the November State General Election City Hall 85 George P. Hassett Dr. 2 nd Floor City Council Chambers	Sat., Oct. 17 – 8:30am - 2:30pm
	Sun., Oct. 18 – 8:30am - 2:30pm
	Mon., Oct. 19 – 8:30am - 4:30pm
	Tues., Oct. 20 – 8:30am - 4:30pm
	Wed., Oct. 21 – 8:30am - 7:30pm
	Thur., Oct. 22 – 8:30am - 4:30pm
	Fri., Oct. 23 – 8:30am - 12:30pm
	Sat., Oct. 24 – 8:30am - 2:30pm
	Sun., Oct. 25 – 8:30am - 2:30pm
	Mon., Oct. 26 – 8:30am - 4:30pm
	Tues., Oct. 27 – 8:30am - 4:30pm
	Wed., Oct. 28 – 8:30am - 7:30pm
	Thur., Oct. 29 – 8:30am - 4:30pm
	Fri., Oct. 30 – 8:30am - 12:30pm

**COMMONWEALTH OF MASSACHUSETTS
WILLIAM FRANCIS GALVIN
SECRETARY OF THE COMMONWEALTH**

WARRANT FOR 2026 STATE GENERAL ELECTION

SS. To the Director of Elections of the City of Medford

GREETINGS:

In the name of the Commonwealth, you are hereby required to notify and warn the inhabitants of said city who are qualified to vote in General Election to vote at:

Ward 1 (P1)	Andrews Middle School	3000 Mystic Valley Pkwy (Café)
Ward 1 (P2)	Firefighter's Club	340 Salem Street
Ward 2 (P1)	Roberts Elementary School	Park St & Court St
Ward 2 (P2)	Roberts Elementary School	Park St & Court St
Ward 3 (P1)	American Legion	321 Winthrop St
Ward 3 (P2)	Temple Shalom	475 Winthrop St
Ward 4 (P1)	Tufts University, Gantcher Center Right Rear	161 College Ave
Ward 4 (P2)	Tufts University, Gantcher Center Right Rear	161 College Ave
Ward 5 (P1)	Missituk Elementary School	37 Hicks Ave
Ward 5 (P2)	Missituk Elementary School	37 Hicks Ave
Ward 6 (P1)	West Medford Fire Station	26 Harvard Ave
Ward 6 (P2 & P2A)	Brooks Elementary School	388 High St
Ward 7 (P1)	Mystic Valley Towers, Leasing Office	3610 Mystic Vly Pkwy
Ward 7 (P2 & P2A)	McGlynn K-8 Public School	3004 Mystic Valley Pkwy
Ward 8 (P1)	Senior Center	101 Riverside Ave
Ward 8 (P2)	South Medford Fire Station	Zero Medford St

On **TUESDAY, THE THIRD DAY OF NOVEMBER, 2026**, from 7:00 A.M. to 8:00 P.M. for the following purpose:

To cast their votes in the State General Election for the candidates of political parties for the following offices:

SENATOR IN CONGRESS	For this Commonwealth
GOVERNOR	For this Commonwealth
LIEUTENANT GOVERNOR	For this Commonwealth
ATTORNEY GENERAL	For this Commonwealth
SECRETARY OF STATE	For this Commonwealth
TREASURER	For this Commonwealth
AUDITOR	For this Commonwealth
REPRESENTATIVE IN CONGRESS	5 th Middlesex DISTRICT
COUNCILLOR	6 th DISTRICT
SENATOR IN GENERAL COURT	2 nd Middlesex DISTRICT
REPRESENTATIVE IN GENERAL COURT	23 rd , 34 th , 35 th Middlesex DISTRICT
DISTRICT ATTORNEY	Northern DISTRICT
REGISTER OF PROBATE	Middlesex COUNTY

QUESTION 1: LAW PROPOSED BY INITIATIVE PETITION

Do you approve of a law summarized below, on which no vote was taken by the Senate or the House of Representatives before May 6, 2026?

SUMMARY

This proposed law would make most records held by the Legislature and the Office of the Governor public records under the Massachusetts Public Records Law. This proposed law would exempt documents related to the development of public policy and communications between legislators and their constituents, if those communications are reasonably related to a constituent's request for assistance in obtaining government-provided benefits or services or interacting with a government agency.

A YES VOTE would make most records held by the Legislature and the Office of the Governor public records under the Massachusetts Public Records Law.

A NO VOTE would make no change to the Massachusetts Public Records Law.

QUESTION 2: LAW PROPOSED BY INITIATIVE PETITION

Do you approve of a law summarized below, on which no vote was taken by the Senate or the House of Representatives before May 6, 2026?

SUMMARY

This proposed law would specify that employees of the Committee for Public Counsel Services ("CPCS") are permitted to engage in collective bargaining with their employer. It would also require CPCS, after executing a collective bargaining agreement, to request the appropriation necessary to fund such agreement from the Governor.

A YES VOTE would specify that Committee for Public Counsel Services employees may form a union to collectively bargain with their employer.

A NO VOTE would make no change to the law governing labor relations for Committee for Public Counsel Service employees.

QUESTION 3: LAW PROPOSED BY INITIATIVE PETITION

Do you approve of a law summarized below, on which no vote was taken by the Senate or the House of Representatives before May 6, 2026?

SUMMARY

This proposed law would eliminate political party primaries for state elections and instead establish a system where there would be a single, all-party primary in which all candidates, regardless of their party affiliation, would be listed on one ballot, and voters could vote for any candidate on the ballot. The two candidates receiving the most votes in the primary would advance to the general election ballot.

This proposed law would require candidates for governor and lieutenant governor to run and be listed jointly on the ballot in the primary.

This proposed law would provide political party status to any group whose candidates for any statewide office received at least 3% of the ballots cast in the state primary.

A YES VOTE would eliminate separate party primaries for state elections and require a single primary in which all candidates appear on one ballot, voters could vote for any candidate, and the top two candidates would advance to the general election.

A NO VOTE would make no change to the laws governing primary elections.

QUESTION 4: LAW PROPOSED BY INITIATIVE PETITION

Do you approve of a law summarized below, on which no vote was taken by the Senate or the House of Representatives before May 6, 2026?

SUMMARY

This proposed law would permit eligible individuals to register to vote or update their voter registration address on Election Day.

An individual who is eligible to vote could register to vote on Election Day by going to the polling place in the precinct where they live during voting hours and presenting proof of residency and signing a written oath. Proof of residency could be a valid photo identification, or documentation showing the individual's name and the address where the individual resides, such as a current utility bill, bank statement, government check, residential lease, wireless telephone statement, paycheck, current student fee statement or other document from a post-secondary school, or another government document or correspondence. The written oath would require the individual to certify that they are a citizen of the United States, are at least 18 years old, are not legally prohibited from voting, and have not and will not vote in the same election at another location. The oath would require the individual to acknowledge that providing false information is a felony punishable by not more than 5 years imprisonment or a fine of not more than \$10,000, or both.

If an individual did not present proof of residency, they would be allowed to cast a provisional ballot, which would be counted only if the individual returned to provide the required information before the close of polls for a municipal election; within two days after a state primary; or within six days after a state election.

Individuals who register to vote on Election Day would be registered to vote in future elections as well as in the election taking place that day.

Individuals who are already registered to vote would not be able to change their political party affiliation on Election Day.

The proposed law would take effect on January 1, 2028.

A YES VOTE would permit eligible citizens to register to vote or to update their voter registration address at their polling place on Election Day.

A NO VOTE would make no change to the laws governing voter registration.

QUESTION 5: LAW PROPOSED BY INITIATIVE PETITION

Do you approve of a law summarized below, on which no vote was taken by the Senate or the House of Representatives before May 6, 2026?

SUMMARY

This proposed law would change the limit on how much revenue the state can collect in a given year. The proposal would limit state revenue in a given year to the net amount of state revenue from the year before, increased by a rate equal to the average growth of wages and salaries in Massachusetts over the most recent three years. If revenue collected by the state in a given year exceeds the limit, the excess amount would be refunded to taxpayers the following year. The proposed law would include all revenue from the surtax on incomes over \$1 million when calculating the revenue limit and when determining whether state revenue exceeds the limit.

The provisions of the proposed law would all be effective as of July 1, 2027.

The proposed law states that, if any of its parts were declared invalid, the other parts would stay in effect.

A YES VOTE would change the limit on state revenue collection, tying it to prior year collections plus average wage and salary growth, and provide for a rebate of revenue exceeding that limit.

A NO VOTE would make no change in the law relative to state revenue collection.

QUESTION 6: LAW PROPOSED BY INITIATIVE PETITION

Do you approve of a law summarized below, on which no vote was taken by the Senate or the House of Representatives before May 6, 2026?

SUMMARY

This proposed law would establish a Nature for All Fund that, subject to appropriation by the Legislature, would receive 50% of state taxes collected from the sale and use of sporting goods, recreational vehicles, and golf courses for the first year of its operation. After July 1, 2028, the Nature for All Fund would begin receiving, subject to appropriation by the Legislature, 100% of state taxes collected on the sale and use of sporting goods, recreational vehicles, and golf courses. The sales tax revenue received by the Nature for All Fund would exclude sales tax revenue transferred to the Massachusetts Bay Transportation Authority State and Local Contribution Fund and the School Modernization and Reconstruction Trust Fund. The proposed law would allow the state Executive Office of Energy and Environmental Affairs to spend the money in the Nature for All Fund for natural resource conservation.

The proposed law would allow public and private donations to the Nature for All Fund. The proposed law would prevent the state comptroller from transferring surplus funds in the Nature for All Fund at the end of the fiscal year. It would also allow state agencies, municipalities, public charities involved in natural resource conservation, tribal governments, and other regional public entities to receive money from the Nature for All Fund.

Natural resource conservation would include the conservation or restoration of land to protect drinking water, streams, rivers, lakes, coasts, farms, forests, connectivity between open spaces, and lands and natural resources of indigenous cultural significance. Natural resource conservation would also include the creation, improvement, and management of parks, trails, greenspaces or outdoor recreation access.

The proposed law would establish a 15-member Nature for All Board that consists of five state officials and ten members of the public appointed by the Governor. The proposed law would require the ten members of the public to include representatives of underserved communities and indigenous peoples and at least one person with expertise or experience in natural resource conservation. The proposed law would allow the state Executive Office of Energy and Environmental Affairs to spend money from the Nature for All Fund to hire staff to manage the fund. The proposed law would also require the Nature for All Board to establish rules about how the money in the Nature for All Fund should be spent, including rules regarding alignment with environmental justice principles, access to and restoration of lands and natural resources of indigenous cultural significance, promotion of affordable housing development, and other matters regarding spending and bond issuance.

The proposed law would require the state Executive Office of Energy and Environmental Affairs to submit an annual report to various state committees regarding the funds spent to buy or improve land in cities and towns containing environmental justice populations.

The proposed law would take effect on July 1, 2027.

A YES VOTE would create a fund that could be utilized for natural resource conservation that would receive some state taxes collected on the sale and use of sporting goods and recreational vehicles, and the use of golf courses.

A NO VOTE would not create this natural resource conservation fund or change how sales and use taxes are spent.

QUESTION 7: LAW PROPOSED BY INITIATIVE PETITION

Do you approve of a law summarized below, on which no vote was taken by the Senate or the House of Representatives before May 6, 2026?

SUMMARY

This proposed law would allow single-family homes to be built in a residentially zoned area as long as the land on which it is to be constructed is at least 5,000 square feet, has at least 50 feet of land bordering the street, road, or public way that it faces, and has access to public sewer and water services.

The proposed law would allow cities and towns to reasonably regulate certain aspects of those single-family homes, including their height, distance from neighboring buildings, open space, parking requirements, and whether they can be rented out on a short-term basis. The proposed law would also allow the Executive Office of Housing and Livable Communities to issue guidance or regulations to administer the proposed law.

A YES VOTE would allow single-family homes to be built on lots of 5,000 square feet or more in residential areas, subject to reasonable local regulation of certain aspects of those homes.

A NO VOTE would make no change to the law relative to building single-family homes.

QUESTION 8: LAW PROPOSED BY INITIATIVE PETITION

Do you approve of a law summarized below, on which no vote was taken by the Senate or the House of Representatives before May 6, 2026?

SUMMARY

The proposed law would change the type and amount of marijuana that may legally be possessed in Massachusetts by repealing the laws that legalize, regulate, and tax the retail sale of adult recreational use marijuana in Massachusetts. The proposed law would also permit persons 21 years of age and older to possess 1 ounce or less of marijuana including no more than 5 grams in the form of concentrate, and to gift or transfer to another person 21 years of age and older 1 ounce or less of marijuana including no more than 5 grams in the form of concentrate. The proposed law would also impose a civil penalty of \$100 and forfeiture of the marijuana for the possession of marijuana between the weight of 1 and 2 ounces.

For persons 21 years of age and younger, the proposed law would make the possession of 2 ounces or less of marijuana a civil infraction subject to a \$100 fine, forfeiture of the marijuana, completion of a drug awareness program and community service, and notification to their parents or legal guardian of the offense and penalties.

The proposed law would allow currently licensed adult recreational marijuana businesses to apply on an expedited basis to become a licensed medical marijuana dispensary and to sell their remaining inventory of adult recreational marijuana to medical marijuana dispensaries. The proposed law would retain the Cannabis Control Commission but modify its authority so it would regulate only the medical marijuana market.

The proposed law states that, if any of its parts were declared invalid, the other parts would stay in effect.

The proposed law would take effect on January 1, 2028.

A YES VOTE would prohibit the legalization, regulation, and taxation of the retail sale of adult recreational use marijuana, and change the penalties for possession of marijuana.

A NO VOTE would make no change to the law relative to marijuana.

QUESTION 9: REFERENDUM ON AN EXISTING LAW

Do you approve of a law summarized below, which was approved by the House of Representatives on July 18, 2024 by a vote of 124 to 33, and approved by the Senate on July 18, 2024 by a vote of 35 to 5?

SUMMARY

This law makes a number of changes to Massachusetts laws governing firearms.

The law adds school administrators and licensed healthcare providers as parties permitted to ask a court to issue an Extreme Risk Protection Order – requiring an individual to surrender or relinquish their firearm licenses, permits, and firearms - if an individual is a present danger to self or others. The law also provides that, when issuing an Harassment Prevention Order, a court may also order the surrender of firearms licenses, permits, and firearms.

The law imposes penalties for possessing, creating, and transferring untraceable “ghost gun” firearms and requires all firearms except antiques and relics, including unfinished frames and receivers that can be readily made into a finished product, to have serial numbers. The law includes privately-made guns like 3D-printed guns within the provisions governing untraceable “ghost gun” firearms.

The law changes firearms licensing requirements to: (1) allow local licensing authorities to request prior license and permit information from the state, as well as access petitions for involuntary mental health commitments denied by a court in addition to prior involuntary commitments, as a part of their review of applications for licenses to carry firearms, firearm ID cards, and licenses to sell firearms; (2) require an individual to be 21 years of age to own semiautomatic rifles or shotguns; (3) add the possibility of incarceration of up to six months for a second offense of failing to report a firearm loss or theft; and (4) enable 12-15 year olds to apply for a self-defense spray permit with parental permission, and 15 to 18 year olds to apply independently.

The law allows local firearm licensing authorities to transfer the responsibility to inspect firearm dealers to the State Police. The law requires local licensing authorities to attend statewide training regarding those inspections. It requires dealers to confiscate expired or suspended licenses and report them to the state and to local licensing authorities.

The law changes the definition of “machine gun” to include bump stocks, trigger cranks, Glock switches and auto sears among the devices whose possession and use are subject to penalties. It expands the definition of “silencer” to include the parts used to construct a silencer.

The law clarifies how to determine whether a firearm is an assault-style weapon and the circumstances under which a person may continue to possess assault-style weapons and large capacity feeding devices they already own.

The law requires the state Firearm Control Advisory Board and the state Secretary of Public Safety and Security to review and update the rosters of prohibited assault-style firearms, approved firearms, and approved firearms sold for target shooting.

The law clarifies requirements relating to the carry and transport of firearms in motor vehicles and ATVs. It prohibits the carrying of firearms in government buildings, polling locations, and schools, with certain exceptions.

The law expands data compilation and reporting requirements to and from the state, and creates a publicly-accessible dashboard of anonymized aggregate firearm data, along with a commission to study that data.

The law requires the State Police to provide training and a test for new applicants for licenses to carry or Firearm ID cards.

The law establishes two special legislative commissions – one to examine funding for violence prevention services, and one to study emerging firearms technology.

The law criminalizes discharging a firearm and striking a building in use.

A YES VOTE would keep in place the law, which increases the regulation of firearms, including ghost guns, machine guns, and assault-style weapons.

A NO VOTE would repeal this law.

Hereof fail not and make return of this warrant with your doings thereon at the time and place of said voting.

**COMMONWEALTH OF MASSACHUSETTS
WILLIAM FRANCIS GALVIN
SECRETARY OF THE COMMONWEALTH**

WARRANT FOR 2026 STATE GENERAL ELECTION

Given under our hands this _____ day of _____, 2026.
(month)

President
City Council of Medford

Hand Delivered

_____, 2026.
Director of Elections (month and day)

Warrant must be posted by **October 27, 2026** (at least *seven days prior* to the **November 3, 2026** State General Election).